

**CHAPTER W-17 – DAMAGE CAUSED BY WILDLIFE****Index**

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## CHAPTER 17 - DAMAGE CAUSED BY WILDLIFE

### ARTICLE I - General Provisions

#### #1700- Definitions for Articles I – XI

- A. **“Aftermath”** means the usable livestock forage left from an alfalfa crop after the last annual harvesting or after the first killing fall frost. The “first killing frost” is the time the temperature drops below 25°F after September 1 each year. This date/temperature shall be determined by negotiation with the claimant based upon weather station data for the local area.
- B. **“Alfalfa”** means land on which alfalfa has been seeded and has become established to the extent that fifty (50) percent or more of the useable livestock forage is alfalfa.
- C. **“Artificially seeded rangelands”** means land on which grasses or legumes have been seeded, and have become established to the extent that 50 percent or more of the useable livestock forage production is from the seeded species and whose primary use is grazing by livestock.
- D. **“Big game being moved or under direct control of Division personnel”** includes, but is not limited to the following:
  - 1. If they are being driven or through-herded.
  - 2. If they are intentionally moved as a result of actions of Division personnel.
- E. **“Claimant”** means a person who has filed a game damage claim with the Division and in the case of commercial orchards, shall be the legal owner of said orchard.
- F. **“Commercial Market Garden”** means a tract of land not less than one acre in size farmed by an individual or entity for the production of agricultural products, including, but not limited to, fruits, vegetables, or flowers, for commercial sale; provided further the person or entity can demonstrate the commercial nature of the operation through possession of an established commercial sales location, or by producing associated documents, which may include a valid business license, a defined business plan, commercial sales receipts, income tax forms, or contractual sales agreement(s).
- G. **“Crops under cultivation”** means all products of the soil that are planted, managed, grown, severed and saved by manual labor and/or mechanical means on an annual basis, including grasses and legumes maturing for harvest, small grains, row crops and vegetables, but not grasses or other forage on lands used primarily for pasturage, windbreaks, gardens (except commercial market gardens) or ornamental trees and shrubs.
- H. **“Damage”** means any change in the quality or quantity of any property which reduces its value. Damage shall include all costs necessary to restore property to its condition immediately prior to damage, to replace it with property of equal value or to compensate for restoration or replacement.
- I. **“Damage to fences”** means any damage in excess of ten (10) percent of the value of any specific fence just prior to damage. A “specific fence” means that portion of any fence between

corner posts; in a situation where corner posts are greater than one-quarter (1/4) mile apart, "specific fence" shall mean a one-quarter (1/4) mile section of fence.

- J. **"Damage prevention materials damaged or destroyed by wildlife"** means materials which have been damaged by big game to the extent that such materials have been rendered unusable for the purpose intended.
- K. **"Division"** means the Division of Colorado Parks and Wildlife.
- L. **"Grazing land"** means land used primarily for production of native forage plants for livestock grazing as differentiated from lands where a crop is harvested.
- M. **"Grazing land which is deferred for seasonal use"** means grazing land that is designated for a postponement of grazing by livestock for a specific season(s) with the purpose of reserving forage available for grazing by livestock during a later season.
- N. **"Harvested crops"** means any crops that have been reaped, severed, gathered and appropriately saved, stored for subsequent use. Saving or storage will not be considered as appropriate unless done by a method representing accepted agriculture practices.
- O. **"Hay meadows"** means land that is used primarily for production of hay but may also be used for grazing by livestock prior to and following cutting for hay. Production is from a long term stand of grasses or legumes and is irrigated or is classified by the Soil Conservation Service as wet meadow, salt meadow, sandy meadow or mountain meadow range sites.
- P. **"Historic levels"** means the average number of a species of big game that occurred on the property in question during the 20-year period of January 1, 1953 through December 31, 1972.
- Q. **"Normal life"** means the period of time that panels and permanent fencing reasonably can be maintained by the person to whom they were issued specifically:
  - 1. Panels are presumed to have a normal life of 5 years or as agreed upon by the property owner and the Division through written agreement when constructed according to Division specifications.
  - 2. Permanent fencing materials are presumed to have a normal life of 20-30 years or as agreed upon by the property owner and the Division through written agreement when constructed according to Division specifications.
- R. **"Nurseries"** means a group of trees and/or shrubs propagated for sale, transplant, or for use as stock for budding and grafting for commercial purposes.
- S. **"Orchard"** means a planting of fruit trees cultivated for commercial purposes. Such orchards may be subdivided for game damage claim purposes into one of the following groups:
  - 1. Commercial producing orchard shall be defined as a planting of fruit trees that for 1 of the last 3 years has produced fruit for sale in amounts of no less than one thousand (1,000) 40-lb.-boxes of apples or pears; or no less than two hundred and fifty (250) 40-lb. boxes of peaches or other stone fruit; or one ton (2,000 lbs.) of cherries or any combination of the above so long as the size of the orchard exceeds one acre.

2. "Commercial non-producing orchards" shall be defined as an orchard planting of no less than one (1) acre of non-producing fruit trees planted at no less than one hundred (100) trees per acre for all species except that sweet cherry trees shall be planted at no less than sixty (60) trees per acre.
- U. **"Pasture meadows"** means land is used primarily for the production of grasses or legumes grazed by livestock and is irrigated or is classified by the Soil Conservation Service as wet meadow, salt meadow, sandy meadow or mountain meadow range sites.
- V. **"Personal property"** means everything that is subject to ownership, other than real estate. Personal property includes moveable and tangible things, such as animals, furniture, merchandise.
- W. **"Real property"** means land and generally whatever is erected or growing upon or affixed to land.
- X. **"Season"** for hunting means any period of time established by the Wildlife Commission for the taking of big game. When investigating a big game damage claim, the Division shall consider all big game hunting seasons established during the 12-month period immediately preceding the date when the first notice of loss was made.

#### **#1701 – Filing of Big Game Damage Claims**

These rules require claimants to file notices, claim forms, and supporting documents with the Division by providing such documents to the "relevant CPW Area Office" in paper or electronic form. The relevant CPW Area Office means the office having administrative responsibility over some or all of the lands where the damage at issue occurred as shown on the Areas, Districts and Office Locations map on the CPW website, available at [https://cpw.state.co.us/learn/Maps/CPW\\_Districts.pdf](https://cpw.state.co.us/learn/Maps/CPW_Districts.pdf). If the lands where the damage at issue occurred span more than one such area, the claimant should file all papers with the CPW Area Office having authority over the lands where the majority of or the most severe damage occurred. Claimants shall only file papers with one area office.

#### **#1702 - Permit to Take Big Game Causing Damage**

- A. No hunting license is required for any person authorized to take big game under any permit issued under provisions of 33-3-106 C.R.S. Big game killed under this permit remain the property of the state.
- B. All bear and mountain lion taken or destroyed under this subsection or 33-3-106 (3) C.R.S. shall remain the property of the state and shall be reported to the Division within 5 days. Such report shall contain:

1. Name(s) of person(s) who killed the animal(s).
2. The county and the specific location of the kill.
3. The species and number of animals killed.
4. The reason for such action.

The Division has the responsibility to recover or dispose of the carcass or to allow it to decay. Voluntary delivery of said carcass or parts to the Division is also allowed.

- C. Without regard to harvest limit quotas, unit boundaries or season dates, the Director or his designee may authorize the taking of any problem lion or bear by any lawful means designated,

including but not limited to methods permitted under Article XVIII, Section 12b, of the Colorado Constitution, when such lion or bear is causing damage to livestock or property or are frequenting areas of incompatibility with other users as may be necessary to protect public health, safety and welfare. The taking of lion or bear under this section shall be by licensed hunters, houndsmen, or trappers who shall be bound by all other statutes and regulations regarding the taking and possession of bear and mountain lion. (Reference 8 CCR 1201-12 of Colorado Department of Agriculture regulations regarding control of depredating animals).

- D. The Director shall establish a statewide list of hunters, houndsmen, and trappers to take problem bears or lions taking into consideration the ability to respond, skill, experience, location, and the ability of the hunters, houndsmen, or trappers who have applied to participate in removal operations; and, in selecting participants from that list for any particular removal operation shall further take into consideration the urgency dictated by the situation and the environment in which the removal will occur.
- E. When any permit to take a big game causing excessive damage to private, real or personal property, is issued to members of the public other than the landowner or his designee, any hunting under such permit shall be directed by the Division in cooperation with the landowner.

**#1703 - Damage Caused By Big Game under Control of the Division or By Prevention Material Being Used By the Division.**

- A. When big game are being moved or are under the direct control of Division personnel and cause damage to real or personal property, the following provisions shall apply:
  - 1. When damage is noticed by Division personnel, such damage shall be reported to the property owner, lessee or person in charge immediately and confirmed in writing within 5 days.
  - 2. The amount of the claim shall be determined by the actual value of property at the time of damage.
  - 3. The Division may require the owner or his authorized agent, when reasonable, to assist the Division in locating alleged damage.

**#1704 - Vacant**

**#1705 - Unreasonable Restriction on Big Game Hunting**

- A. No claim for big game damage will be approved where the claimant or other person who controls the land where damage occurred has unreasonably restricted hunting for the species causing damage unless the claimant shows that he or she have not unreasonably restricted hunting for the specific group of animals causing damage. Whether or not an unreasonable restriction of hunting has occurred will be determined by the following procedure:
  - 1. The percentage and number of big game animals to be harvested in each Management area (DAU) will be established annually by the Wildlife Commission.
  - 2. Upon request by the landowner, the Division shall provide to such landowner the number of big game, by species, anticipated on his property, property under his control and private and public property to which he controls access during the hunting season and the percent and number of such big game to be harvested. Such notice shall be in writing and shall be a basis for establishing a reduction in a necessary harvest of wildlife.



3. The claimant shall be responsible to prove that the percentage of big game harvested, during the big game hunting seasons in the twelve (12) months previous to his filing of a damage claim, was not substantially lower than the percentage described in (1) or (2) above. Proof provided pursuant to this subsection by the claimant may include any one of the following: (such proof shall be required only for lands in the same management area (Data Analysis Unit) where the damage occurred and only for the species causing damage):
  - a. A statement that big game hunting access was not prohibited to any person on or across lands under his control or the control of the owner of the private land where damage has occurred except where hunting would create an obvious or immediate risk of injury or death to persons, damage or death to livestock congregated in a concentrated area, or other significant property damage.
  - b. Actual counts of big game animals during each hunting season for all areas to which he or the owner of the private lands where damage has occurred, controlled access and documentation of big game taken by hunters, including a list of numbers and species of big game and indicating that the percentage described in (1) is substantially met on such areas.
  - c. Documentation sufficient to establish that the failure to achieve the necessary harvest was due to factors outside the control of the claimant (or the lessor).
  - d. Evidence that the number of big game harvested on lands to which he, or the owner of the private lands where damage has occurred, controlled access was not substantially less than the value established pursuant to #1705(a)(2).

#### **#1706 - Big Game Hunting Access Fee Limitation**

- A. A damage claim will be denied when a fee in excess of five hundred (\$500.00) per season has been charged any person for big game hunting access onto or through any lands owned, leased or otherwise controlled by the claimant, or the landowner if the claimant is the lessee. Access is defined as ingress into or through any property for the purpose of big game hunting.

This provision applies only to the species causing damage; but even then, not if the claimant shows that he or she have not unreasonably restricted hunting for the specific group of animals that was causing damage by charging a fee in excess of \$500 for access on or to lands which the animals causing damage inhabit or migrate across. In the case of a lease or other agreement by two or more persons, the fee charged shall be determined by dividing the total fee paid for the lease by the number of individual big game hunters who actually hunted under terms of the lease or agreement for one or more days. The number of big game hunters who actually hunted shall include any persons who were individually authorized to hunt but were unable to do so for reasons outside the control of the claimant.

- B. A statement of the maximum fee actually charged, if any, shall accompany any claim for game damage. The amount of this maximum fee shall be determined in accordance with provisions of #1706(a).

#### **#1707 - Claimant Statement on Use of Big Game Damage Prevention Materials**

- A. Any person who submits a claim for big game damage shall provide a certified statement that big game damage prevention materials provided by the Division, if any, were used in an effort to prevent or reduce the extent of damage and were not used for any other purpose.

#### **#1708 - Claimant Statement on Insurance for Big Game**

- A. Any person who submits a claim for damage shall provide a certified statement on his Proof-of-Loss form that the damages for which he is submitting a claim are, or are not, covered under an insurance policy and that he does or does not contemplate receiving insurance compensation for damages claimed. If the claimant is in possession of a crop insurance policy or any other insurance policy covering the real or personal property for which a big game damage claim is made to the Division, he shall provide on his Proof-of-Loss form the name, address and phone number of the insurance company(s) providing coverage; the name, address and phone number of the insurance company's agent; the amount and type of coverage provided; and the amounts of insurance reimbursement requested and received.
- B. The claimant shall also submit with his Proof-of-Loss form written permission authorizing the Division to make inquiries to and receive information from the claimant's insurance company(s) and its agent(s) concerning any insurance coverage of or claims submitted under the policy for damages for which claims have also been submitted to the Division.
- C. In the event a claim is paid by the Division to any person and such person later receives additional compensation for such damage under an insurance policy, he shall immediately repay to the Division any moneys he has previously received from the State for those damages.
- D. Refusal to provide accurate insurance information as herein required shall be cause for denial of the claim.

#### **#1709 – Arbitration of Big Game Damage Claims**

- A. If the Division cannot agree with the claimant on normal historic levels of big game or any element of a settlement (such as the extent of damage, the numbers or species of big game involved) such disagreement may be decided by the arbitration process provided for in Section 33-3-104 (1)(d) or 33-3-203 (2), C.R.S. Arbitration of non-forage damage claims pursuant to Section 33-3-104(1)(d) must be requested prior to review of the claim by the Commission. Subject to the provisions of Article 3 of Title 33, C.R.S., and the following, arbitration proceedings shall be conducted pursuant to the "Uniform Arbitration Act of 1975," part 2 of Article 22 of Title 13, C.R.S.
- B. The arbitrator chosen by the claimant and the arbitrator chosen by the Division shall be non-neutral members of the arbitration panel; and the third arbitrator chosen by these two arbitrators (or by the court as the case may be) shall be a neutral member of the panel.
- C. The claimant and the division shall enter into a written arbitration agreement for submission to the arbitration panel. Said agreement shall include:
  - 1. A statement of the parties setting forth all facts relevant to the damage claim upon which the parties agree.
  - 2. A statement of the parties identifying statutes, regulations, and other law which the parties agree are applicable to the claim.
  - 3. A statement of the issues of fact upon which there is disagreement between the parties, including a list of witnesses and other evidence which each intends to introduce to the panel in support of their positions.
  - 4. A statement of the legal issues upon which there is disagreement between the parties. Each party shall submit a brief written legal argument, including citation to statutes, regulations, court decisions and other appropriate law, supporting their position.

5. A statement setting forth the procedures the parties have agreed upon for presentation of the claimant's and division's factual evidence and legal argument. Generally, the panel shall proceed in accordance with these regulations. Any agreement to proceed in a manner inconsistent with these regulations shall be subject to approval of the arbitration panel.
  6. The panels authority to render decisions deciding issues of fact and law shall be limited to those matters upon which the parties have agreed in the written agreement are in dispute and any issues incidental to those matters.
- D. The panel shall render its decision in accordance with the provisions of article 3 of title 33 of the Colorado Revised Statutes and Chapter 17 of the Commission's wildlife regulations.
- E. Except as may otherwise be approved or required by the arbitration panel, the arbitration hearing shall be conducted as follows.
1. The hearing shall be conducted by all three arbitrators who shall act by majority vote.
  2. The Division shall be responsible to make a recording of the arbitration hearing and maintain a copy of all exhibits presented to the panel for consideration.
  3. The claimant shall have the burden of proving all elements of the claim for damages pursuant to the provisions of Article 3 of Title 33, C.R.S., and of this Chapter 17 of the Commission's regulations. The Division shall have the burden of proving any affirmative defenses.
  4. Evidence
    - a. Testimonial and evidentiary rulings shall favor the reception of any and all evidence which may be probative and relevant to the decision; but unduly repetitious, irrelevant, or incompetent evidence may be limited or excluded. The arbitrators shall not give undue weight to hearsay or other improper or unsubstantial evidence.
    - b. The panel may take notice of general, technical or scientific facts within its knowledge, but only if the fact so noticed is brought to the attention of the parties before final decision and each party is afforded an opportunity to controvert the fact so noticed.
    - c. At the conclusion of each witness' testimony, the other party may then cross-examine such witness or witnesses. The arbitrators may cross-examine any witness called.
    - d. Unless otherwise ordered by the panel, five (5) copies of each exhibit shall be submitted (one for each panel member's use, one for the record to be maintained by the Division, and one for the opposing party's use).
  5. The hearing shall proceed in the following order:
    - a. Call to order, introductory remarks by arbitrators.
    - b. Presentation by the Division of all documents that have been filed with the Division by the claimant in making his claim and any prepared by the Division in response to the claim. They shall include, to the extent they exist, but are not limited to all 10-day notices of damages, the claimant's Proof of Loss form with supporting documentation, investigator's report, the Division's recommendation to the Wildlife Commission. The Division shall also report how far the claim has progressed through the administrative claims process and the status of the claim in that process at the time arbitration was requested.
    - c. Presentation of any stipulation or agreements of the parties.

- d. Opening statement by the claimant, including a brief statement of what it will prove and the relief requested.
  - e. Opening statement by the Division, including a brief statement of what it will prove and of defenses to be presented to claim.
  - f. Presentation of evidence in support of the claim by the claimant.
  - g. Presentation of the Division's evidence contesting the claim, including defenses.
  - h. Rebuttal by the claimant.
  - i. Closing statements by the parties.
  - j. Adjournment.
- 6. Proved further, however, that the panel may at any time consider any motion or make any ruling in the interest of fairness, completeness and economy of the proceedings which ruling will not result in substantial prejudice to a party's right to present its case.
  - 7. The panel shall issue its written decision within ten (10) days after adjournment of hearing. Each decision issued pursuant to an arbitration hearing shall include a statement of findings and conclusions upon all the material issues of fact, law or discretion considered and state the sanction or relief granted or denied.
  - 8. No ex-parte communication with or by the neutral arbitrator may occur during the pendency of a hearing.
- F. The Division shall designate a Division employee to act as the case administrator, who shall arrange for meeting place for the arbitration hearing and recording of the hearing, issue subpoenas for witnesses at the request of the panel, and otherwise assist the panel in the performance of its duties.

#### **#1710 – Duty to Mitigate Big Game Damage**

The doctrine of avoidable consequences applies to big game damage claims, and claimants have a duty to mitigate damages. A claim shall be denied or limited, as is appropriate under the doctrine, where the claimant fails to exercise reasonable care and diligence to avoid the loss or to minimize or lessen resulting damage. The burden of proving a failure to mitigate damages shall be on the Division.

#### **#1711-#1718 - Vacant**

### **ARTICLE II – Big Game Damage Prevention Materials**

#### **#1719 – Eligibility for Temporary Big Game Damage Prevention Materials**

- A. With respect to temporary game damage prevention materials, "landowner" is defined as a person who owns land that is, directly or through the lessee of such land, used for the production of agricultural products, or uses personal property for which the state would generally have liability for game damage under 33-3-104, C.R.S., even if the landowner or lessee is specifically not otherwise eligible for such game damage payments or permanent game damage prevention materials due to the unreasonable restrictions on hunting or availability of access or because of the fee charged by the landowner or the lessee for the purpose of big game hunting access to or across the property.

#### **#1720 – Request for Big Game Damage Prevention Materials**

- A. Landowners or lessees who qualify for damage payments and who desire to obtain materials to prevent damage caused by big game shall make a written request to the Division for such materials on a form furnished by the Division.
- B. If the landowner does not erect permanent game damage prevention materials within a reasonable time period after receipt of materials, not to exceed 270 days, to prevent the anticipated damage, or if the materials are not erected in such a manner as to reasonably prevent damage, the Division shall not be responsible for any subsequent damage caused by the failure to use such materials. When materials have been provided for temporary game damage prevention materials or electric fencing surrounding apiaries this time period shall not exceed 15 days from date of receipt of materials. Damage prevention materials may be delivered by the Division to any person if his request is the result of game damage occurring in any area where it has not normally occurred.
- C. If the Division offers, in writing, to furnish fencing to a landowner and the offer is refused or he does not respond within 30 days, the Division shall not be responsible for any subsequent damage until such time as the landowner makes a written request for fencing materials at which time the provision of #1720(b) shall apply.

#### **#1721 – Delivery of Big Game Damage Prevention Materials**

- A. The Division will furnish materials for, or construct, permanent stackyards or orchard fencing only under terms of a written cooperative agreement which is binding on heirs, assignees, and successors in title and which is filed with the clerk and recorder in the county in which the fence is erected. The Division will provide materials within the limitations of the special purpose funds appropriated for game damage materials.
- B. The Division will furnish temporary protective fencing only when the landowner, lessee, property owner or person in charge acknowledges by his signature receipt of such material.

#### **#1722 – Maintenance of Big Game Damage Prevention Materials**

- A. All permanent stackyards or fences or panels furnished or constructed by the Division shall be maintained and repaired for their normal life by the landowner unless damaged or destroyed by wildlife. Materials for repairing damages done by wildlife to permanent fencing or panels in excess of \$100 shall be furnished by the Division and shall remain the property of the Division.
- B. All persons furnished panels or other fencing materials shall be responsible for maintaining such materials in a current state of repair to prevent access by big game.
- C. In the event that damage prevention materials are destroyed or made unusable through negligence or abuse or if they are used for any purposes other than the prevention of game damage the Division may take one or more of the following actions:
  - 1. After written notice to the landowner the Division may remove the materials from the landowner's owned or leased land.
  - 2. The Division may require payment for any damaged or misused materials or may refuse to issue any additional prevention materials until the landowner has paid for the damaged or misused materials. The amount of payment shall be the cost of new materials of similar construction, reduced by a depreciation factor based on the normal life of these materials.

3. The Division may deny all or part of a big game damage claim where proper use and maintenance of damage prevention materials would have prevented or reduced the damage.
- D. All voluntary workers who assist the Division in erecting damage prevention materials shall provide their name, address, and telephone number in writing to the Division 10 days prior to such work being performed. The Division will provide this information to the landowner upon his request.
- E. In the case of land ownership change the former owner shall notify the Division when such change occurs. The Division may require a written ratification of the existing agreement by the new owners.
- F. All permanent and temporary damage prevention materials furnished or constructed by the Division shall remain the property of the state.

#### **#1723-#1729 – Vacant**

### **ARTICLE III – Big Game Damage Claim Procedures**

#### **#1730 – General Provisions**

- A. **Notice of Loss:** In order for claimants to be eligible to receive state funds for property damage caused by big game, claimants must give the Division timely notice of their discovery of such suspected damage on Notice of Loss forms provided by the Division. Claimants may provide initial notice of such damage to the Division verbally but must file a Notice of Loss form with the relevant CPW Area Office within ten (10) days of discovering such damage. Said ten (10) day period may be extended for up to an additional ten (10) days for good cause shown, provided the claimant gave the Division verbal notice within ten (10) days of discovering such damage. Good cause exists where the Division fails to provide the necessary forms in a timely manner or other circumstances beyond the claimant's control.
- B. The Notice of Loss must include:
  1. date or dates damage occurred;
  2. number and species of big game causing damage;
  3. date damage discovered;
  4. estimated extent of damage;
  5. location of damage; and
- C. If the Division receives the claimant's first written Notice of loss more than ten (10) days after the date of discovery, the claimant shall provide an explanation for the delay. Absent a showing of good cause, claimant's failure to file a timely Notice of Loss shall be cause for denial of the claim.
- D. Notices of Losses for Ongoing Damage
  1. If the same type of damage caused by the same species of big game is ongoing at a single site, additional Notices of Damage are not required every ten (10) days if the claimant keeps the Division reasonably informed of ongoing damage and the claimant files a comprehensive Notice of Loss when the damage ends. The comprehensive Notice of Loss shall include an estimate of the total extent of damage, specify beginning and ending dates that the damage occurred, and provide the other information required in #1730(B)(1) through (5). Proof of Loss

forms shall be filed with the relevant CPW Area Office within 90 days of the Division's receipt of claimant's last Notice of Loss. Damage is not considered ongoing if more than 30 days have elapsed between instances when damage occurred.

2. For big game damage, a single site is a complete orchard, adjoining fields of growing crops, haystacks under the same contiguous ownership or control, or a single herd of cattle or band of sheep, under one ownership and continuous control between spring and winter range. If damage occurs at different sites or is of a different type (e.g., harvested alfalfa instead of growing alfalfa), separate Notices of Loss and Proof of Loss forms are required, even if the claimant is the same and the species of big game causing damage is the same.
- E. The Division shall conduct a timely investigation into the Notice of Loss and assign a Division employee to be the primary point of contact with the claimant. The claimant shall cooperate in the investigation and authorize the Division to enter private property under the claimant's control as is reasonably necessary to conduct the investigation. .

#### **#1731 - Proof of Loss**

- A. The claimant shall file Proof of Loss forms with the relevant CPW Area Office within 90 days of the Division's receipt of claimant's last Notice of Loss. Forms shall be provided by the Division and the claimant shall complete and return only those forms designated for the type of damage which occurred. Incomplete or incorrect forms may be returned to the claimant by the Division; however, the time period for filing Proof of Loss forms shall not be altered thereby. Such forms shall be signed and be accompanied by evidence sufficient for the claimant to prove by a preponderance of the evidence that such damage was caused by big game.
- B. The relevant Area Wildlife Manager or their designee will meet and confer with the claimant within thirty (30) days of the Division's receipt of the claimant's Proof of Loss form in an effort to reach a settlement.

#### **#1732 - Claim Settlement**

- A. Any claim up to \$5,000 may be approved by the Area Wildlife Manager. Claims in the amount of \$5,001 to \$20,000 may be approved by the Regional Manager. Claims exceeding \$20,000 which are recommended for payment by the Division must be approved by the Commission.
1. In cases where the Division and the claimant are unable to reach settlement, the claimant may seek review by the Commission, by an arbitration panel (big game damage claims only), or in the state courts, all as provided in Article 3 of Title 33, C.R.S. A claim of any amount, which is recommended for denial of payment by the Director shall require a final decision by the Wildlife Commission; provided, however, if the claim is for other than livestock forage damage and is for \$7,500 or less, the claimant may waive review by the Commission and commence an action in the small claims division of the county court of the county of which the damage was alleged to have occurred. Provided, further, that in the case of claims for livestock forage in hay meadows, pasture, artificially seeded rangelands and grazing land which has been deferred for seasonal use, a claimant who wants Commission review of their claim must give written notice of their intent to waive arbitration. Either type of waiver shall be in writing and shall be mailed to the Commission within ten (10) days after such claimant receives notification from the Division of the denial of his claim, or within ten (10) days after the claimant receives from the Division an offer of settlement unacceptable to such claimant.
- B. When a claim for big game damage is recommended for denial of payment by the Division, the claimant will be notified of such recommendation by certified mail at least 30 days prior to the regularly scheduled Wildlife Commission meeting when such claim will or could be considered.

- C. Any claimant who cashes a state warrant issued for the purpose of claim settlement thereby acknowledges receipt of payment in full satisfaction of damages claimed and thereby waives any and all further claim against the state for such damages.

**#1733-#1739 – Vacant**

**ARTICLE IV - Damage to Livestock or Personal Property Used In the Production of Raw Agricultural Products Caused By Big Game**

**#1740 – Proof of Loss Requirements**

- A. The claimant shall be responsible to prove by a preponderance of evidence that he suffered damage to livestock or personal property used in the production of raw agricultural products and that such damage was caused by big game to the extent claimed.

**#1741 - Documentation of Claims**

- A. Documentation by the claimant necessary to prove a claim for damage by big game shall include but is not necessarily limited to:
1. Tangible evidence that big game was present in the area. Evidence may include, but is not necessarily limited to photographs or records of torn logs, scat, tracks or direct observation.
  2. Demonstrate that such animals were responsible for the damage, and in the case of livestock, the actual cause of injury or death. Evidence may include, but is not necessarily limited to type and location of wounds, physical description of the carcass, for example: hide peeled or rolled back, measured distance between canine wounds, claw marks, hemorrhage, or buried carcasses.

**#1742 – Evaluation and Settlement Procedure**

- A. Payment of all claims involving personal property used in the production of raw agricultural products, other than livestock, will be based on the actual value of the property at the time and place of loss.
- B. Payment of all claims for livestock losses will be based on sales receipts or sale contracts when copies of such receipts or contracts are furnished with the claim and exclude such expenses as transportation, yardage, feed costs at sales yards and sales commissions. Where such receipts or contracts are not submitted to the Division, the following methods shall be used:
1. Payment of adult range sheep claims for each age class, other than running age ewes, will be based on the prices as derived from the USDA Agricultural Marketing Service reports from the September preceding the date of the loss or damage.  
  
Payment for running-age ewes (ewes between the ages of 2 and 5 years old) will be determined by the following formula: The value shall equal the price received for lambs based on contracts or the average weekly sale price from the USDA Agricultural Marketing Service report from the last week of September plus 50% of the above value. (Example: Fall lambs at \$90 Plus 50% = \$90 + \$45 or \$135, total value of each running-age ewe.)
  2. Payment of lamb claims will be based on the average sale price shown in the weekly USDA Agricultural Marketing Service report for the last week of the September preceding the date of the loss or damage.



3. Payment of calf claims will be based on the average sale price shown in the monthly update published by the USDA Agricultural Marketing Service for the month of the October preceding the date of the loss.
4. For good cause shown, a claimant may establish the value of any livestock lost by reliable means other than those shown above. Such claimant shall be required to establish by a preponderance of evidence that the valuation methods listed above are inappropriate for the claim submitted and that the method of valuation requested represents the fair market value of the lost livestock.
5. Payment of all other livestock loss claims will be based on the fair market value at the time of the loss for the type, age and weight of the animal involved.

#### **#1743 – Special Provisions**

- A. The livestock owner or his authorized agent is required to assist in locating and investigating alleged damage.

#### **#1744-#1749 – Vacant**

### **ARTICLE V – Damage to Orchards Caused By Big Game**

#### **#1750 – Proof of Loss Requirements**

- A. At the time of the investigation or upon submission of the proof-of-loss form, the claimant shall be responsible to prove by a preponderance of evidence:
  1. Date that big game were present in the orchard.
  2. That big game did damage to the orchard to the extent that future production will be affected.
  3. A map of the entire orchard showing the location of plantings, each tree within the damaged planting, tree and row spacing and the location of each damaged tree.
  4. Each damaged tree shall be identified by number on the map and in a listing of damaged trees which reports the species, variety, age, nature of the damage (bark or browse damage), extent of damage and the anticipated number of years for recovery.
- B. The claimant shall also furnish:
  1. Crop production records for each block and variety of damaged trees for the past five (5) years. When such records are not available due to change in orchard ownership or tree age, records from orchards with comparable plantings and management shall be provided.
  2. Records of income to the orchard for the past five (5) years and cost of harvesting and handling the fruit for each block and variety of damaged trees. When such records are not available, records from orchards with comparable plantings and management shall be provided.

#### **#1751 – Documentation of Claim**

- A. Investigation of damage claims for any trees shall be conducted jointly by the claimant and the Division. Documentation prepared by the claimant shall be conducted according to the following procedures:

1. Determination of Physical Damage by Type and Percentage.

a. Damage will be designated in the following manner:

- (1) Bark Damage shall be considered only when it has penetrated the bark and cambium layer to the inner wood. Injury of each damaged limb or tree shall be determined on the basis of the width of the exposed wood in relation to the circumference of the damaged limbs or trunk. Damage which does not expose more than 33% of the wood around the limb or trunk will not be considered as serious damage resulting in significant loss of production. Damage that exposes 60% or more of the inner wood shall be considered serious enough to cause total loss of commercial fruit production from the damaged limb or tree in the case of trunk injury. All areas damaged by big game shall be treated with a wood sealing compound, such as "Greencap" or its equivalent, which shall be provided by the Division. Bark damage shall be assessed as:

0-33% = none

34-49% = 33% loss

50-59% = 65% loss

60 and over = 100% loss

and calculated pursuant to the formulas set forth in #1752.

- (2) Browse damage results from loss of shoots, spurs and blossom buds. Damage shall be determined for each damaged side branch (branch), scaffold limb (limb) and tree with the extent of damage assessed as:
- (a) Short term when damage affects only the terminal and blossom buds, resulting in loss of fruit production on apple and pear for two (2) years and on stone fruits (cherry, apricot, peach and plum) for one (1) year.
- (b) Long term when damage affects the growth of limbs and development of the tree structure. Such damage has a longer lasting effect which requires determining the number of years for the limb or tree to achieve the size and productivity of comparable undamaged limbs and trees.
- (c) Permanent damage can be caused by either severe barking or browsing. Such damage can result in the loss of limbs or trees. Where tree replacement is required, both the cost of removal and replacement of trees shall be paid. When 85% of the trees in the planting sustain 60% or more damage, the entire planting shall be considered as 100% loss, requiring replacement.

2. Determination of Percentage Lost of Production:

Damage shall be defined as a loss of production potential. Production is proportional to the number and physical size of all the branches, limbs and trees in the planting. This physical size increases as branches and limbs develop and as the tree enlarges to fill the amount of space allotted by planting distance. When the trees have completed this growth or development period, they are considered full size and reaching full production potential. After a few years at this maximum level of production, tree vigor, fruit size and market quality begin to decline. This results in reduced productivity and income. Using the above concept, assess any loss as a percent reduction in production potential during the years required for the

damaged limbs and/or trees to redevelop the production potential of comparable undamaged trees.

- a. Short Term browsing damage will be proportional to the percent of damage. For stone fruits this will be for one (1) year. For apple and pear, the percentage loss will be reduced by 50% the second year before regaining full potential in the third year.
- b. Long Term damage can result from either browsing or barking. Damage shall be assessed as a percent loss of production potential over a period of years. Loss in the first year will be proportional to the percent of damage but this percentage of loss will decrease each year at a rate proportional to the anticipated recovery period. The percentage of loss will be assessed in relation to comparable undamaged branches, limbs or trees, preferably in the same planting. With developing trees, the number of years to recover will be the number of years remaining to reach full size and full production. Developing apple and pear should close the spacing between trees at an average rate per 5 ft per year while with stone fruits the average rate will be 2.0 feet per year. Damage to mature trees should be assessed as either short term damage as outlined above in (a) or as permanent damage as outlined below in (c).
- c. Permanent damage caused by either a loss of limbs or trees should be assessed as a percent of production over the remaining commercial life of the planting. For trees which need to be replaced as a result of permanent damage, the number of years of lost production shall equal the number of years required to regain the production level of undamaged trees. When tree replacement is required, the damage assessment shall include the cost of removing and replanting. When a group of trees are replaced which can be managed separately, the amount of savings resulting from reduced operating costs shall be determined and deducted from the damage claim.

### 3. Conversion from Percentage to Numerical Crop Loss:

Many factors cause changes in crop production from year to year as well as between trees and plantings. Therefore, it is necessary to assess damages as a percentage of the production potential of the orchard. The percentage crop loss must then be converted to a numerical crop loss for each year of the recovery period. This requires determining the proportion of the planting which is damaged. Such can be determined either by planting distance and number of trees per acre or by the percentage of damaged trees to the total number of trees in the planting.

- a. Numerical crop loss shall be based on a percentage of the production over the previous five (5) years or from comparable plantings of the same variety, tree spacing, age and level of management when actual production records are not available.
- b. For trees which are not in production or did not reach full production during the previous five years, estimates must be based on comparable plantings which have recently reached full production.
- c. Numerical lost production shall be tabulated for each year of the recovery period and for each planting, crop and variety damaged.

### 4. Determination of Annual Loss of Income:

Income to the orchard depends on the amount of fruit produced and its market value. This differs from season to season, between crops and varieties, between growers and even between plantings. Therefore, the value of any crop must be determined based on records of

the average income over the previous five (5) years. Where such records are not available, estimates must be based on income to comparable plantings and level of management. This income assumes that all charges have been deducted such as storage, packing, and sales. This income must be further reduced by an amount equal to the cost of harvesting and hauling the lost production since such costs would not be incurred.

The orchard income (less cost of harvest and handling) when divided by the total number of units of production represents the value of each unit of lost production. This unit value is then multiplied by the number of units of lost production to determine the annual loss of orchard income over the recovery period.

#### 5. Determination of Costs Due to Tree Replacement

When damage is sufficient to require tree replacement, adjustments shall be made not only for the loss of income but also for any added costs of replacement and savings due to reduced annual production costs on the following basis:

- a. Replacing occasional trees in a planting requires the determination of added costs of removal, purchase of trees and planting. Other possible added costs and savings shall not be considered.
- b. Replanting sufficient numbers of trees in a block permits management as a separate planting. Reduced are such operational costs as pruning, bee rental, fruit thinning, fertilizer and insect, mite and disease control during the re-establishment period. The claimant should provide sufficient cost records to verify those cost savings for each of the re-establishment years. Such determinations shall be made before receiving any compensation for lost income and added costs of removing, purchase of trees and replanting.

#### 6. Determination of Present Value of Orchard Losses

Income received today, in payment for lost future production, must be discounted according to the appropriate rate of interest on that money and the number of years of advanced payment for future lost production. The appropriate discount rate from Table B in regulation No. 1754 must be applied for all but the first year of lost production. Different discount rates shall be used depending on the number of years for the orchard to recover lost production.

### #1752 – Formulas for Calculation of Bark Damage

A. Short term bark damage (0-33%/limb or trunk) = no loss

B. Long term bark damage

1. (34-49%/limb or trunk) = 33% loss

$$\text{\$ Loss} = (\text{\# of trees}) (\text{Bu/Tree}) (33\%) (\text{ORV Equivalent}) (2.0) (87\%)$$

Where,

|                  |                                                                    |
|------------------|--------------------------------------------------------------------|
| ORV Equivalent = | (ORV/Bu) – (Harvest + Haul Cost/Bu)                                |
| 2.0 Factor =     | Recovery Loss Adjustment for 4-year recovery period.               |
| 87% =            | Present value percentage factor from column 3 of Table B of #1754. |

2. (50-59%/limb or trunk) = 65% Loss

|                  |                                                              |
|------------------|--------------------------------------------------------------|
| \$ Loss =        | (# of Trees) (Bu/Tree) (65%) (ORV Equivalent) (3.5) (80%)    |
| Where,           |                                                              |
| ORV Equivalent = | (Orchard Run \$/Bu) – (Harvest + Haul Cost/Bu)               |
| 3.5 Factor =     | Recovery Loss Adjustment for 6- year recovery period.        |
| 80% =            | Present value percentage factor from column3 of Table B of # |

C. Permanent Bark Damage (60+%/Limb or trunk) = 100% Loss

Trees which have a limb and/or truck-limb damage in excess of 60%.

1. Limb loss without 100% tree loss.

|                       |                                                                                                                                                                                                                                             |
|-----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| \$ Loss/Tree =        | (Bu/Tree) (# 100%-loss limbs/Total # Limbs) (ORV Equivalent) (Years) (P.V.1) + (Bu/Tree) (# 33%-loss limbs/Total #limbs) (33%) (ORV Equivalent) (2.0) (87%) + (Bu/Tree) (# 65%-loss limbs/total # limbs) (65%) (ORV Equivalent) (3.5) (80%) |
| Where                 |                                                                                                                                                                                                                                             |
| ORV Equivalent =      | (ORV/Bu) – (Harvest + Haul Cost/Bu)                                                                                                                                                                                                         |
| Years =               | Remaining Commercial Life                                                                                                                                                                                                                   |
| P.V.1 =               | Present value percentage factor from Column 3 of Table B of #1754 based on # of years of remaining commercial life.                                                                                                                         |
| 2.0 and 3.5 factors = | recovery loss adjustment for 4 and 6 year recovery periods respectively.                                                                                                                                                                    |
| 87% and 80% =         | present value percentage factors from column 3 of Table B of #1754 for 4 and 6 year recovery periods.                                                                                                                                       |
|                       | (Recovery period for 33% damaged tree is deemed to be 4 years and for 65% damaged tree it is deemed to be 6 years.)                                                                                                                         |
| Total Block \$ Loss = | sum of losses calculated for individual trees.                                                                                                                                                                                              |

2. Total tree loss (individual or block)

|                      |                                                                                                            |
|----------------------|------------------------------------------------------------------------------------------------------------|
| Production \$ loss = | (# of trees) (Bu/tree) (ORV equivalent) (Years) (P.V.)                                                     |
| Replacement \$ Cost= | (# of trees) (Cost of removal/tree + replacement cost/tree + replant cost/tree – operational cost savings) |
| Total \$ loss =      | Production \$ loss + replacement \$ cost                                                                   |
| Where,               |                                                                                                            |
| ORV equivalent =     | (ORV/Bu) – (Harvest + haul cost/Bu)                                                                        |

|         |                                                                                                                                                                |
|---------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Years = | # years of remaining commercial life, but not greater than 10 years for apple, 8 years for peach/apricot, 15 years for sweet cherry, 10 years for sour cherry. |
| P.V. =  | Present value percentage factor from column 3 of Table B of #1754 based on # years of remaining commercial life.                                               |

### #1753 - Formulas for Calculation of Browse Damage

#### A. Short term damage

##### 1. Production trees – removal of terminal and blossom buds

###### a. Full production trees

|                  |                                                                    |
|------------------|--------------------------------------------------------------------|
| \$ Loss =        | (# of trees) (Bu/tree) (% buds browsed) (ORV equivalent) (factor)  |
| Where,           |                                                                    |
| ORV equivalent = | (ORV/Bu) – (Harvest + haul cost/Bu)                                |
| Factor =         | (1.5) (95%) for apple and pear                                     |
| Factor =         | (1.0) for stone fruits                                             |
| 95% =            | present value percentage factor from column 3 of Table B of #1754. |

###### b. Developing young production trees

|                        |                                                                           |
|------------------------|---------------------------------------------------------------------------|
| \$ Loss =              | (# of trees) (Ave exp bu/tree) (% buds browsed) (ORV equivalent) (factor) |
| Where for apple types: |                                                                           |
| Ave exp bu/tree =      | ave exp bu production for next 2 years                                    |
| Factor =               | (1.5) (95%)                                                               |
| Where for stone types: |                                                                           |
| Ave exp bu/tree =      | next year's ave exp bu production                                         |
| Factor =               | (1.0)                                                                     |

##### 2. Pre-production trees – Removal of terminal buds

|           |                                                                                                                        |
|-----------|------------------------------------------------------------------------------------------------------------------------|
| \$ loss = | (# of trees) (Ave exp bu/mature tree) (% buds browsed) (ORV equivalent) (P.V.)                                         |
| Where     |                                                                                                                        |
| P.V. =    | Present value percentage factor from column 3 of Table B of #1754 based on # years = (midproduction age – age of tree) |

B. Long term damage

1. Production trees – Removal of terminal and blossom buds and substantial damage into past year(s) wood. (Would primarily affect young production trees prior to closure and full development.)

a. Full production trees

|           |                                                                                                     |
|-----------|-----------------------------------------------------------------------------------------------------|
| \$ loss = | (# of trees) (Bu/tree) (Years) (ORV equivalent) (P.V.)                                              |
| Where,    |                                                                                                     |
| Years =   | Number of years setback                                                                             |
| P.V. =    | present value percentage factor from column 3 of Table B of #1754 based on number of years setback. |

b. Developing young production trees

|                                      |                                                                                                                                                                                                                                                                                    |
|--------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| \$ loss/year =                       | (# of trees) (Ave exp bu/tree) (% branches browsed) (ORV equivalent) (P.V.)                                                                                                                                                                                                        |
| Total block \$ loss =                | sum of \$ losses for each 1 year setback calculated separately                                                                                                                                                                                                                     |
| Where,                               |                                                                                                                                                                                                                                                                                    |
| Ave exp bu/tree =                    | Bu/tree adjusted for each year's calculation depending on projected production by multiplying Bu/tree times the percent of full production normally realized for that type tree based on its age in the year for which the loss is calculated (from column 7 of Table A of #1754). |
| % branches browsed:                  |                                                                                                                                                                                                                                                                                    |
| For first year of loss Calculation = | % of branches actually browsed. For subsequent years this factor has to be reduced to reflect recovery. The value by which the factor is reduced for each subsequent year = % branches browsed/# years setback.                                                                    |
| ORV equivalent =                     | (ORV/bu) – (Harvest + haul cost/bu)                                                                                                                                                                                                                                                |
| P.V. =                               | present value factor from column 2 of Table B of # 1754 based on the particular year of recovery (1 <sup>st</sup> , 2 <sup>nd</sup> , etc.)                                                                                                                                        |

2. Pre-production trees – Damage into past year(s) wood through browsing or rubbing, setting tree back by years.

|           |                                                                |
|-----------|----------------------------------------------------------------|
| \$ Loss = | (# of trees) (Ave exp bu/tree) (Years) (ORV equivalent) (P.V.) |
| Where,    |                                                                |
| Years =   | Number of years setback                                        |

|                   |                                                                                                                       |
|-------------------|-----------------------------------------------------------------------------------------------------------------------|
| ORV equivalent =  | (ORV/bu) – (Harvest + haul cost/bu)                                                                                   |
| P.V. =            | Present value percentage factor from column 3 of Table B of # 1754 based on # years=(Midproduction age – age of tree) |
| Ave exp bu/tree = | Average expected bushel production/mature tree                                                                        |

C. Permanent damage

1. Developing young production trees

|                       |                                                                                                           |
|-----------------------|-----------------------------------------------------------------------------------------------------------|
| Production \$ loss =  | (# of trees) (Ave exp bu/tree) (ORV equivalent) (Years) (P.V.)                                            |
| Replacement \$ loss = | (# of trees) (Cost removal/tree)+ Replacement cost/tree + replant cost/tree – Operation cost savings/tree |
| Total \$ loss =       | Production \$ loss + replacement \$ loss                                                                  |
| Where,                |                                                                                                           |
| Ave exp bu/tree =     | Average expected bushel production/mature tree                                                            |
| ORV equivalent =      | (Orchard run \$/bu) – (Harvest + haul cost/bu)                                                            |
| Years =               | Age of tree                                                                                               |
| P.V. =                | Present value percentage factor from column 3 of Table B of #1754 based on age of tree in years.          |

2. Pre-production trees

|                       |                                                                                                                        |
|-----------------------|------------------------------------------------------------------------------------------------------------------------|
| Production \$ loss =  | (# of trees) (Ave exp bu/tree) (Years) (ORV equivalent) (P.V.)                                                         |
| Replacement \$ loss = | (# of trees) (cost removal/tree+ replacement cost/tree + replant cost/tree – Operation cost savings/tree)              |
| Total \$ loss =       | Production \$ loss + replacement \$ loss                                                                               |
| Where,                |                                                                                                                        |
| ave exp bu/tree =     | Average expected bushel production/mature tree                                                                         |
| ORV equivalent =      | (ORV/bu) – (Harvest + haul cost/bu)                                                                                    |
| Years =               | Age of tree                                                                                                            |
| P.V. =                | Present value percentage factor from column 3 of Table B of #1754 based on # years = (Midproduction age – age of tree) |

3. Full production trees – total tree loss

\$ loss shall be calculated pursuant to formula set forth in #1752(C)(2).

**#1754 - Production, Recovery and Present Value Tables**



| TABLE A: Projected Production and Production Ages |               |                          |                      |      |                        |                                                           |
|---------------------------------------------------|---------------|--------------------------|----------------------|------|------------------------|-----------------------------------------------------------|
| Tree Type                                         | Plant Density | Full Production Per acre | Start Mid Production | Age  | Obtain High Production | % Full Production Realized in Successive Production Years |
| Apple                                             | 200+          | 1,000 Bu                 | 6 yrs                | (8)  | 10 Years               | 5, 15, 40, 70, 100                                        |
|                                                   | -200          | 1,000 Bu                 | 6 yrs                | (9)  | 12 Years               | 5, 10, 15, 30, 50, 70, 100                                |
| Peach                                             | All           | 400 Bu                   | 4 yrs                | (6)  | 8 Years                | 5, 15, 20, 40, 100                                        |
| Sweet Cherry                                      | All           | 10,000 lbs               | 8 yrs                | (12) | 15 Years               | 5, 10, 15, 20, 30, 50, 70, 100                            |
| Sour Cherry                                       | All           | 10,000 lbs               | 4 yrs                | (7)  | 10 Years               | 5, 10, 15, 30, 50, 70, 100                                |

| TABLE B: PRESENT VALUES FACTORS |        |           |
|---------------------------------|--------|-----------|
| Years                           | P.V.   | % Applied |
| 1                               | 1.0000 | 100%      |
| 2                               | .9091  | 95%       |
| 3                               | .8264  | 91%       |
| 4                               | .7513  | 87%       |
| 5                               | .6830  | 83%       |
| 6                               | .6209  | 80%       |
| 7                               | .5645  | 76%       |
| 8                               | .5132  | 73%       |
| 9                               | .4665  | 70%       |
| 10                              | .4241  | 67%       |
| 11                              | .3855  | 67%       |
| 12                              | .3505  | 62%       |
| 13                              | .3186  | 60%       |
| 14                              | .2897  | 58%       |
| 15                              | .2633  | 56%       |

#### TABLE C: MINIMUM VALUES

(Used when claimant cannot present evidence of actual values)

Bottom production would be 1 bu/tree

Bottom ORV would be juice at \$1.25/bu

#### TABLE D: ABBREVIATIONS

|                   |                                                                                                                                                                                                                                                                                                                                                                               |
|-------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Bu =              | bushel; but if other unit of measurement is appropriate (e.g., box, pound, etc.) substitute appropriate units.                                                                                                                                                                                                                                                                |
| Bu/tree =         | Annual production in bushels (or other appropriate units) of undamaged mature trees, taking into consideration growing practices and conditions.                                                                                                                                                                                                                              |
| Ave exp bu/tree = | Average expected annual production in bushels (or other appropriate units) for undamaged trees, taking into consideration growing practices and conditions, the normal % of full production for age of the tree, and other factors as may be specified for a particular formula. (Note: ("Bu/tree" and "Ave exp" bu/mature tree" do not necessarily imply different factors.) |
| ORV =             | Orchard run value in dollars.                                                                                                                                                                                                                                                                                                                                                 |

#### **#1755-#1759- Vacant**

### **ARTICLE VI – Damage to Crops under Cultivation Caused By Big Game**

#### **#1760 – Proof of Loss Requirements**

- A. At the time of the investigation or upon submission of the proof-of-loss form the claimant shall be responsible to prove by a preponderance of evidence:
1. Big game were present in the field prior to the time of harvest.
  2. Big game did damage to his crop(s) in the amount set forth on his claim.

#### **#1761 – Documentation of Claim**

- A. Documentation by the claimant which is necessary to support a claim for damage to crops under cultivation shall include but not need be limited to:
1. Data indicating that big game caused the damage which may be in the form of counts of big game in the field made initially at the time the damage is first discovered and at least once every ten (10) days thereafter so long as damage continues.
  2. Data indicating the extent of damage in commonly accepted units – for example, pounds, bushels, bales, tons, hundred weight – and the value per unit measurement in dollars. Data acceptable for determining value include:
    - a. Sales receipt for harvested crops from the same field;
    - b. Current market value obtained from local sales, market reports or other sales value sources.

#### **#1762 – Evaluation and Settlement Procedure**

- A. Damage to a growing hay crop shall be evaluated by one of the following three methods or any other method agreed upon in writing by the claimant and the Division.

1. If comparable undamaged areas are available, the method of comparing harvest yield on damaged versus undamaged areas, and adjusting for difference in production, if any, not due to big game use.

Or:

2. Where comparable, undamaged areas are available the selection of comparative sample plots of the damaged and undamaged crop, and clipping, air drying, and weighing vegetation within each plot to determine the quantity and quality of forage removed by wildlife may be used as an option to the method described under #1762 a. 1.

Or:

3. Where comparable damaged and undamaged areas are not available from which to obtain samples, damage shall be evaluated on a cured or air dried forage basis of 2.2 pounds per deer day use, 2.5 pounds per sheep day use, 8.8 pounds per elk day use, 1.6 pounds per pronghorn day use, 2.1 pounds per mountain goat day use, and 15.3 pounds per moose day use, or under conditions existing at the time or place of damage. If this method is used big game counts must be made at least once every ten days and no claim for damage by loss of livestock forage caused by big game shall be submitted for the same time period.
- B. Damage to a growing small grain crop shall be evaluated by comparing the harvest yield on damaged versus the most comparable undamaged areas in the vicinity, and adjusting for differences in production, if any, not due to big game use. Such damage may be evaluated by any other method agreed upon in writing by the claimant and the Division.
- C. Damage to a row crop, shall be determined by one of the following methods, whichever is most appropriate for the crops, type of damage, size of the area and other pertinent factors:
1. Selecting comparative sample areas from the damaged field and measuring the percentage of plants which have been damaged by big game and the estimated average percent of crop loss per damaged plant within each sampled area.
  2. Comparing harvest yield on damaged versus undamaged areas, and adjusting for differences in production, if any, not due to big game use.
  3. Any other method agreed upon in writing by the claimant and the Division.
- D. The value of alfalfa aftermath damaged by big game shall be based on the local market value of nearby comparable alfalfa fields, e.g. amounts paid for leasing nearby comparable alfalfa fields for grazing.
- E. Value of any crop under cultivation shall be the market value at the time and place of harvest less any normal harvesting costs that were not incurred.
- F. Where the Division has determined that consulting with a crop adjuster would facilitate resolution of issues raised as part of any claim for damage to crops under cultivation, including settlement of such claim, it may contract with a crop adjuster to evaluate and report on suspected damage to such crops. If the estimated amount of damage claimed reasonably exceeds \$10,000, the Division shall contract with a crop adjuster for an evaluation and report on the suspected damage. In all cases, the report prepared by the crop adjuster will be provided to the claimant for their review and information.

**#1763-#1769 – Vacant**

## **ARTICLE VII – Damage to Harvested Crops Caused By Big Game**

### **#1770 – Proof of Loss Requirements**

- A. At the time of the investigation or upon submission of the proof-of-loss form, the claimant shall be responsible to prove by a preponderance of evidence:
  - 1. That big game caused damage to his harvested crop in the amount set forth on his claim.

### **#1771 – Documentation of Claim**

- A. Documentation by the claimant which is necessary to support a claim for damage to harvested crops shall include but need not be limited to:
  - 1. Evidence sufficient to establish that the alleged damage was caused by big game. Such evidence may include actual counts, photographs and data on concentration of tracks and/or fecal pellets or any other reasonable evidence.
  - 2. Data indicating the extent of damage in commonly accepted units such as pounds, bushels, bales or tons and the value per unit. Data acceptable for use in determining value include:
    - a. Sales receipts for crops of similar quality during the period when the damage occurred.
    - b. Evidence or documents showing the actual cost for replacement if the damaged crops were replaced.

### **#1772 – Evaluation and Settlement Procedure**

- A. Damage to a harvested crop shall be evaluated as follows or by any other method agreed upon in writing by the claimant and the Division.
  - 1. Damage to stacked hay shall be evaluated by calculating the pounds of hay which have been damaged by big game through:
    - a. calculation of the volume of hay removed or damaged;
    - b. determining the number of bales damaged based on baling wires or strings remaining or number of bales originally in the stack.
  - 2. Damage to harvested crops, other than haystacks, and crops being fed to livestock shall be evaluated on a cured or air dried forage basis of 2.2 pounds per deer day use, 2.5 pounds per sheep day use, 8.8 pounds per elk day use, 1.6 pounds per pronghorn day use, 2.1 pounds per mountain goat day use, and 15.3 pounds per moose day use, or under conditions existing at the time and place of damage.
- B. Value of any crop shall be the market value at the time and place of damage.

### **#1773-#1779 – Vacant**

## **ARTICLE VIII – Damage to Lawful Fences Caused By Big Game**

### **#1780 – Proof of Loss Requirement**

- A. At the time of the investigation or upon submission of the proof-of-loss form, the claimant shall be responsible to prove by a preponderance of evidence:

1. That big game caused damage to the specific lawful fence in the amount set forth on his claim.

#### **#1781 – Documentation of Claim**

- A. Documentation by the claimant which is necessary to support a claim for damage to fences shall include but need not be limited to:
  1. A statement that damaged fence was a “lawful fence” as defined in Section 35-46-101(1), C.R.S., and that it was in good repair prior to being damaged.
  2. Tangible evidence that big game animals caused the damage (i.e. game counts, tracks, droppings, hair, game trails).
  3. Agreement between the claimant and Division investigating officer, where possible, that incurred damage was caused by big game animals.
  4. A statement setting forth the amount of fence destroyed including the amount of material by type (i.e. posts, wire, gates and labor) that is needed to repair the fence to its condition immediately prior to the occurrence of damage or destruction.

#### **#1782 – Evaluation and Settlement Procedure**

- A. Settlement with the claimant shall be based on repair/replacement costs if the damage is in excess of ten (10) percent of the value of the specific fence involved; provided however, that if the value of the repaired fence is greater than the value of the fence before damage, the amount of payment shall be reduced by the amount of increased value, or the Division may offer to replace damaged materials on an in-kind basis provided this is agreed to by both parties.

#### **#1783 – Special Provisions**

- A. In the event that fence repairs are needed prior to the time that notification of damage can be given and/or investigation made, the claimant shall provide sufficient evidence (photos, etc.) to the Division so that the extent of damage that occurred and that was caused by big game can be determined.
- B. The state shall not be liable for damages to any fence on Federal lands except where the claimant can prove ownership and title to such fence.
- C. The Division may require the fence owner or his authorized agent, when reasonable, to assist in locating and investigating alleged damage.

#### **#1784-#1789 - Vacant**

### **ARTICLE IX – Damage to Livestock Forage in Hay Meadows, Pasture and Artificially Seeded Rangelands Caused By Big Game**

#### **#1790 – Proof of Loss Requirements**

- A. At the time of the investigation or upon submission of the proof-of-loss form, the claimant shall be responsible to prove by a preponderance of evidence:
  1. That damage occurred and it was more than ten (10) percent in excess of normal historic wildlife use levels.

2. That damage occurred and that the claimant was unable to graze the damaged area at the rate or time which would normally be expected by the claimant for this area under similar growing conditions in the absence of big game grazing.
3. That damage was caused by big game and not adverse weather, insects, rodents, or some other cause.
4. That the claimant owns the land or leases it from a private owner.
5. That the meadow, pasture or artificially seeded range land was fenced and that the fence was adequate to exclude any livestock present on adjoining lands.

#### **#1791 – Documentation of Claim**

- A. Documentation by the claimant which is necessary to support a claim for damage to livestock forage in hay meadows, pasture meadows and artificially seeded rangelands shall include but not necessarily be limited to:
  1. A statement of the actual beginning and ending dates that the area was grazed.
  2. A statement of the numbers of livestock animal units grazed by species.
  3. A proof-of-loss form prepared jointly by the claimant and a Division investigator after the livestock grazing period has been completed. Such form shall include an estimate of the amount of grazing which was still available, if any, at the time of investigation. If disagreements exist these will be separately noted on the proof-of-loss form.
  4.
    - a. The landowner shall provide the Division with written documentation of when (including time and dates) and where (including specific locations) the damage is occurring.
    - b. Head counts of the wildlife causing damage made by the claimant shall be made in accordance with Section 33-3-202, C.R.S. to include timely notice to the Division. The required 24-hour notice to the Division shall be given either in person or by direct telephone contact to the nearest regional or area office.
    - c. The claimant shall provide the Division with the results of their counts with the Proof of Loss forms. Nothing herein shall prevent the Division from making additional head counts.
  5. A statement characterizing the nature of the growing season in one of three categories and a statement as to the basis for such characterization: favorable, normal, or unfavorable. Such statement may include data on normal and current year dates of last killing frost and amount of rainfall by week from the nearest weather station or by other records or evidence where such records are kept.
  6. An estimate by a professional range conservationist or other similarly qualified person, acceptable to the Division and claimant, of the normal grazing capacity of the damaged area considering the actual growing conditions, range condition and type of livestock grazed or the normal grazing capacity can be determined by an arbitration panel composed of one arbitrator chosen by the landowner, one chosen by the Division and a third arbitrator chosen by the other two arbitrators as stated in 33-3-104 (d). The panel shall provide an estimate within ninety (90) days of the claim submitted.

7. If the damaged area is a hay meadow, a certified statement of the date of last hay cutting.
8. A statement designating the historic average number(s) of big game, by species, present on the property in question.

#### **#1792 – Evaluation and Settlement Procedure**

- A. The amount of damage shall be the difference between the grazing capacity of the area and the amount of grazing actually realized by the claimant, provided that the amount of damage calculated in this way could have been caused by the number and kind of big game animals documented to have used the designated area or damage can be determined strictly on the basis of the number of big game animals counted on the property during the damage period. The amount of damage that could have been caused by big game shall be based on the following annual average livestock animal unit month (AUM) equivalents:

13.6 pronghorn months = 1 AUM

8.7 bighorn months = 1 AUM

9.9 deer months = 1 AUM

2.5 elk months = 1 AUM

1.4 moose months = 1 AUM

10.3 mountain goat months = 1 AUM

Each AUM equivalent represents the average total amount of forage that could have been eaten by big game. Actual consumption is determined by establishing the proportion of the big game animals' daily forage intake that occurred on the damaged area and dividing the wildlife UM's by this fraction. In the event that these average equivalents are not applicable to the circumstances of an individual case either party may come before the Commission to request a change in regulation in that instance.

1. The Division may compensate landowners or lessees with the comparable amount of hay or feed or equivalent thereof in lieu of AUM equivalents of the wildlife causing damage where the loss of livestock forage required supplemental feeding.
- B. Grazing capacity shall be determined by forage measurement procedures which meet U.S. Soil Conservation Service standards, contained in the National Range Handbook published by the U.S. Soil Conservation Service (July 13, 1976). (note: later amendments to these standards are not hereby incorporated). Copies of the SCS handbook may be obtained at cost by writing: Director, Colorado Parks and Wildlife, 6060 Broadway, Denver, CO 80216.
  - C. The amount of grazing actually realized by the claimant shall be determined by taking the actual number of animal unit months of livestock grazing which occurred on the area and adding the estimated amount of grazeable forage remaining after termination of grazing or subtracting the amount by which the area was overgrazed.
  - D. Liability is limited to that proportion of the damage in excess of the historic big game use levels, and the state shall be liable for such damages only if they are more than ten (10) percent in excess of normal historic wildlife use levels. This proportion is obtained by subtracting the 1953 to 1973 average population from the current population for the species causing damage and dividing this difference by the current population. If the Division does not agree with the claimant on the historic levels of any species, or this proportion, it may be determined by arbitration. If a

satisfactory solution cannot be established by arbitration then the proportion shall be determined by the legal process described in 33-3-104(1)(d) and 33-3-108, C.R.S.

E. Value of grazing shall be the current market value at the time and place of the forage loss.

#### **#1793-#1799 - Vacant**

### **ARTICLE X - Damage to Livestock Forage on Grazing Land Which Is Deferred For Seasonal Use Caused By Big Game**

#### **#17100 – Notice of Intent to Defer Grazing**

- A. Any person who designates all or part of his grazing land as “grazing land which is deferred for seasonal use” shall provide written notice thereof to the Division no later than fifteen (15) days prior to the beginning date of intended deferral period. Such notice shall include:
1. A map and legal description of the grazing land which is deferred for seasonal use.
  2. A statement from a professional range conservationist or similarly qualified person, stating the range site(s) included within the area to be designated and the range condition class(es) of the area, and the resulting initial stocking rate recommended for the designated area in a normal year, a favorable production year and an unfavorable production year. If more than one range site and/or condition class is represented on the area designated, the area in each site and condition class shall be outlined on the map described in 1, and the percentage of the total area in each site and condition class shall be recorded. Methods used to determine range site and condition class shall be described. Copies of all data collected shall be included. If the professional range conservationist or other qualified person is not available, the range site classification maps and data may be used provided that the range site classification maps and data have been developed within the last five years.
  3. A signed statement on forms provided by the Division from the owner or grazing lessee of the lands to be designated certifying;
    - a. That the area to be designated is surrounded by a fence adequate to exclude livestock which may be present on adjacent lands.
    - b. Beginning and ending dates of the intended deferral period (period of no livestock grazing).
    - c. Beginning and ending dates of the intended grazing period.
    - d. Numbers of livestock animal units by species which are intended to be grazed.

#### **#17101 – Proof of Loss Requirements**

- A. At the time of the investigation or upon submission of the proof-of-loss form, the claimant, shall be responsible to prove by a preponderance of evidence:
1. That he met the requirements concerning notice of intent to defer grazing on the lands where the damage is alleged to have occurred.
  2. That damage occurred and it was more than ten (10) percent in excess of normal historic use levels.



3. That livestock were unable to graze the area at the rate planned and normally expected under similar growing conditions in the absence of big game grazing; and that the damage was caused by big game and not adverse weather, insects, rodents or some other cause.
4. That he owns the land or leases it from a private owner.
5. That the land was adequately fenced to exclude any livestock present on adjoining lands.

#### **#17102 – Documentation of Claim**

- A. Documentation by the claimant which is necessary to support a claim for damage to livestock forage on grazing land deferred to seasonal use shall include but is not necessarily limited to:
  1. A statement of the actual beginning and ending dates that the area was grazed.
  2. A statement of the numbers of livestock animal units grazed by species.
  3. A proof-of-loss form prepared jointly by the claimant and the Area Wildlife Manager or his designee after the grazing period has been completed. Such form shall include an estimate of the amount of grazing which was still available, if any, at the time of investigation. If the claimant and the Division representative do not agree on the amount of remaining grazing capacity, sufficient evidence which may include but is not limited to appropriate photographs and range condition data shall be provided by the claimant to document the actual condition of the area, and if disagreements exist these will be separately noted on the proof-of-loss form.
  4. A statement of the number and kind of big game using the designated area including data from all counts made by date and time of day and a list of all known witnesses who participated in these counts. Head counts of the wildlife causing damage shall be made in accordance with Section 33-3-202, C.R.S. to include timely notice to the Division. The required 24-hour notice to the Division shall be given either in person or by direct telephone contact to the nearest regional or area officer. Numbers of big game shall be expressed in terms of the average daily number of animals present and shall include an estimate of the percentage of their daily food consumed or damaged on the designated area. Counting procedure shall be described. Nothing herein shall preclude the Division from making additional head counts.
  5. A statement describing the quality of the growing season as favorable, normal or unfavorable. Based on weather and related environmental conditions, a growing season shall be considered favorable if, on the average, more favorable conditions occur 1 year in 4 or less frequently. A growing season shall be considered unfavorable if, on the average, less favorable conditions occur 1 year in 4 or less frequently. Such statement shall include data on normal and current year dates of the last killing frost and the amount of rainfall by week from the nearest weather station or by other records or evidence where such records are kept.
  6. A statement designating the historic average number(s) of big game, by species, present on the property in question.

#### **#17103 – Evaluation and Settlement Procedure**

- A. The amount of damage shall be the difference between the grazing capacity of the area and the amount of grazing actually realized by the claimant, provided that the amount of damage calculated in this way could have been caused by the number and kind of big game animals documented to have used the designated area during the deferral period. The amount of damage

that could have been caused by big game shall be based on the following annual average livestock animal unit month (AUM) equivalents:

13.6 pronghorn months = 1 AUM

8.7 bighorn months = 1 AUM

9.9 deer months = 1 AUM

2.5 elk months = 1 AUM

1.4 moose months = 1 AUM

10.3 mountain goat months = 1 AUM

If the deferred grazing land contains a substantial amount of herbage other than grasses and legumes, the AUM equivalents must be adjusted for the amount of herbage consumed by wildlife which is not livestock forage. This is accomplished by dividing the appropriate AUM equivalent from the list above, by the proportion of dietary overlap for the species of wildlife and livestock involved. This proportion shall be obtained from the following table unless some other figure can be shown to reflect more accurately the actual situation.

**DEGREE OF DIETARY OVERLAP BETWEEN VARIOUS BIG GAME SPECIES AND DOMESTIC CATTLE AND SHEEP.**

|           | COW | SHEEP |
|-----------|-----|-------|
| ELK       | .91 | .96   |
| DEER      | .50 | .80   |
| PRONGHORN | .80 | .80   |

Each AUM, as adjusted if necessary, represents the average total amount of forage that could have been eaten by big game. Actual consumption is determined by establishing the proportion of the big game animals' daily forage intake that occurred on the damaged area and dividing the wildlife UM's by this fraction. In the event that these average equivalents are not applicable to the circumstances of an individual case either party may come before the Commission to request a change of regulations in this instance.

- B. Grazing capacity shall be determined by forage or measurement procedures which meet U.S. Soil Conservation standards as set forth in #1792(b) of these regulations or as designated for the forage growth favorable class most representative of the actual growing conditions when forage was produced.
- C. The amount of grazing actually realized by the claimant shall be determined by taking the actual number of animal unit months of livestock grazing which occurred on the deferred area and adding the estimated amount of grazable forage remaining after termination of grazing or subtracting the amount of which the area was overgrazed.
- D. Liability is limited to the proportion of the damage in excess of the historic big game use levels and the state shall be liable for such damages only if they are more than ten (10) percent in excess of normal historic wildlife use levels. This proportion is obtained by subtracting the 1953 to

1973 average population from the current population for the species causing damage and dividing this difference by the current population. If the claimant and the Division cannot agree on this proportion it may be determined by arbitration. If a satisfactory solution cannot be established by arbitration then the proportion shall be determined by the legal process described in 33-3-104(1)(d) and 33-3-108, C.R.S. (amended, 1984 by HB 1376).

- E. Value of grazing shall be the current market value at the time and place of the forage loss. Values computed for loss of dry standing forage shall be reduced by the amount which should have been required for purchase of necessary protein, and/or energy supplements if the forage had been used for grazing.

#### **#17104 – Special Provisions**

If any person who has designated deferred grazing land turns livestock into the designated area at any time or at any rate other than that specified in the notice of designation, he shall notify the Division in writing on the date, type and number of livestock within 10 days of the actual beginning date of livestock grazing. If any such change substantially modified the expected grazing capacity of the designated area, any claim for damage shall be based on the modified grazing capacity.

#### **#17105-#17109 – Vacant**

### **ARTICLE XI – Damage to Nurseries Caused By Big Game**

#### **#17110 – Proof of Loss Requirements**

- A. At the time of the investigation or upon submission of the proof-of-loss form, the claimant shall be responsible to prove by a preponderance of evidence.
  - 1. That big game were present in the nursery.
  - 2. That big game did damage to the nursery to the extent that future production will be affected.
- B. The claimant shall also furnish:
  - 1. The age of each damaged tree or shrub.
  - 2. The species and variety of each damaged tree or shrub.
  - 3. Production records for the last 5 years, or for the number of years the claimant has owned the nursery, whichever is less.
  - 4. Average operating expenses for 5 years, or for the number of years the claimant has owned the nursery, whichever is less, immediately preceding the date of claim. Such expenses include all costs for spraying, pruning, irrigation water, harvesting, cultivating and any other cultivation practice required for production of the crop.

#### **#17111 – Documentation of Claim**

- A. Investigation of damage claims for nursery damage shall be conducted jointly by the claimant and the Division's investigator. Documentation which is necessary to support a claim for damage to nurseries shall be prepared by the claimant and shall include but need not be limited to:
  - 1. A map of the entire nursery area showing the location of trees and shrubs within the nursery that have been damaged by big game.

2. The species, variety, age and extent of damage for each tree and shrub.
3. The percent of each tree that has been damaged by barking, browsing or rubbing which shall be determined as follows:
  - a. Bark damage – will be determined by estimating the percent of bark removed down to the cambium layer on the circumference of the trunk and branches of each tree or shrub and its relative affect on the life and productivity of the trees and shrubs in question. This percent permanent damage will be applied to the appropriate tree and shrub values to arrive at the amount of reimbursement to the claimant. Light barking which doesn't expose the cambium will not be considered as permanent damage.
  - b. Browse damage – will be determined for each tree or shrub by first estimating the percent of total twigs that have been damaged. This percent will be applied to the appropriate tree or shrub value to arrive at the dollar amount of damage.
  - c. Barking and browse damage to the same tree or shrub will be determined by first estimating bark damage then estimating browse damage to only the unbarked percent of each tree or shrub.
  - d. Antler rubbing damage, which characteristically occurs to younger trees, will be determined by estimating the percent of permanent damage to each tree including bark removal and stem breakage, and applying this percent to the appropriate tree value.
4. A statement as to the overall health and vigor of each damaged tree in relation to the undamaged trees. The overall condition of each damage tree shall be considered in relation to trees which have been maintained in a reasonably good condition. Sales receipts will be reviewed to assist in determining the value of the trees. Field inspection and production records where applicable shall be used as a basis for this statement.
5. The dollar value loss for the entire claim shall be a summation of dollar value losses derived from the total of individual tree or shrub damage values. If the damaged stock happens to be fruit trees the values listed for them in Article V may be used. Leaf browsing during the growing season is usually not damaging since it is not permanent. Removal of fruit and berry buds can be damaging to future production.

#### **#17112 – Special Provisions**

- A. Where more than one claim for damage is made for the same trees or shrubs damaged in different years, cumulative payments to the claimant shall not exceed 100 percent of the highest value of the trees or shrubs involved.
- B. Where 100% damage has been paid on a tree or shrub it becomes the property of the state and may be disposed as the Division directs.

### **ARTICLE XII- Damage Caused By Small Game and Furbearers**

#### **#17121- Definitions for Articles XII - XV**

- A. **“Body Grip Device”** means a mechanical device designed to kill an animal quickly upon capture.
- B. **“Bona fide scientific research”** means any research project conducted by the Division or authorized by a scientific collection permit issued by the Division.
- C. **“Cable Device Trap”** means any powered or non-powered device made of stranded steel cable

set in a manner that a loop of cable encircles the animal's body or limb.

- D. **"Canada Lynx Recovery Area"** means the area of the San Juan and Rio Grande National Forests and associated lands above 9,000 feet extending west from a north-south line passing through Del Norte and east from a north-south line passing through Dolores and from the New Mexico state line north to the Gunnison basin (including Taylor Park east to the Collegiate Range). The GMUs included in the area are: 55, 65, 66, 67, 68, 70, 71, 74, 75, 76, 77, 78, 79, 80, 81, 551, 681, 711 and 751.
- E. **"Designated and marked trails"** means any trail on public property or a public trail easement across private lands that has signs to indicate that it is a public trail; is maintained; and has a trail number or designation on a map or brochure published by the government entity who has jurisdiction over the trail.
- F. **"Drag"** means an object attached to a trap to retard the movement of a trap and to detain an animal.
- G. **"Enclosed Foothold Trap"** means any mechanical device designed to encapsulate and hold the animal's foot. These foot encapsulating devices are highly species-selective by design.
- H. **"Foothold Trap"** means any mechanical device with jaws designed to catch an animal by the foot.
- I. **"Lethal cable device trap"** means a cable device trap designed to kill an animal upon capture.
- J. **"Live Trap (Cage or Box)"** means a mechanical device designed in such a manner that the animal enters the trap through an opening that prevents the animal from exiting.
- K. **"Nonlethal cable device trap"** means a cable device trap with a stopping device designed to prevent strangulation of the species for which the cable device trap is set, or a mechanical or spring powered cable device trap designed to catch the animal by the foot or leg.
- L. **"Pan Tension"** means the amount of pressure required to activate a trap, as measured at the center of the pan.
- M. **"Relocation"** means movement of live wildlife captured by a person to another site which is not contiguous to the capture site.
- N. **"Traps specifically designed not to kill"** means padded, laminated, or off-set steel jawed foothold traps, enclosed foothold, box traps, and cage traps, as conditioned elsewhere in these regulations.

#### **#17122 – Manner of Take**

- A. The following are legal methods of take for all small game and furbearers listed in this chapter, except as otherwise noted. Any method of take not listed herein shall be prohibited, except as provided by statute or these regulations.
  - 1. Any rifle or handgun.
  - 2. Any shotgun.
  - 3. Handheld bows and crossbows.

4. Any air gun, except that for coyote or bobcat the air gun must be a pre-charged pneumatic air gun .25 caliber or larger.
5. Slingshots only for small game mammals listed herein.
6. Live traps (limited to cage or box traps) for live capture and relocation.

## **B. Special Conditions**

1. Live Capture and Relocation
  - a. Unless relocation has been authorized, small game and furbearers captured in live traps (limited to cage or box traps) cannot be moved from the capture site and must be killed or released on site when the trap is checked.
  - b. Except as provided herein, a relocation permit is required to relocate all small game and furbearers.
    - i. Tree squirrels, cottontail rabbits, and raccoons trapped in cage or box traps may be relocated without a permit provided the Division has been notified in advance; the relocation site is appropriate habitat for the species; permission has been obtained from the private landowner; and relocation occurs within 10 miles of the capture site for squirrels and rabbits, and within two miles of the capture site for raccoons.
    - ii. Relocation permit applications must be submitted to and approved by the Division prior to relocation. Permit approval or denial shall be based on the following: size of the relocation site; proximity of the site to public lands; habitat suitability and potential to support the relocated species; escape control, including buffer zones and active control if necessary; wildlife health and zoonotic disease concerns, and any other appropriate wildlife management concerns. In addition, applications must be submitted for all requests to move prairie dogs including modifications and extensions for wild to wild relocation permits. Permits authorizing movement of prairie dogs shall cost forty dollars (\$40.00). Original applications shall also include a management plan specifically addressing the applicant's long term plans for the maintenance or control of the prairie dog population on the property. For any species which, in accordance with the provisions of § 35-7-203, C.R.S., requires approval of the county commissioners, the applicant shall also submit a copy of the resolution as approved by the county commissioners.
2. Labeling of traps – All live traps (limited to cage or box traps) placed on public lands must be labeled permanently and legibly with the trapper's Customer Identification Number (CID) in a location that is visible without having to manipulate the live trap in any way. If the trapper does not have a CID, all live traps placed on public lands must be labeled with the trapper's name. Live traps not properly labeled may be confiscated by any Wildlife Officer.
3. Capture of Non-Target Wildlife:
  - a. In the event of live capture of non-target wildlife that is not a state or federally identified threatened, endangered, or otherwise protected species, the non-injured wildlife shall be immediately released. Injured wildlife shall be dispatched in accordance with the provisions of regulation #303.E.5 or transported to a current CPW-licensed wildlife rehabilitator. If the wildlife cannot be released without human endangerment, the wildlife shall be dispatched in accordance with the provisions of regulation #303.E.5.
  - b. If the non-target wildlife is a state or federally identified threatened, endangered, or

otherwise protected species, the following provisions apply:

- i. If the non-target wildlife is uninjured and can be released without human endangerment, the wildlife shall be immediately released.
- ii. If the non-target wildlife cannot be released without human endangerment or is injured refer to applicable state and/or federal law pertaining to other disposition, reporting requirements and penalties.

4. Live Capture of Target Wildlife:

If the target depredating wildlife is taken alive, the wildlife shall be dispatched in accordance with the provisions of regulation #303.E.5, or the wildlife may be relocated if prior approval has been granted by the Division as provided in regulation #17122.B.1.

- C. Except as prohibited by federal, state, and local statutes or regulations, toxicants or handheld devices designed to deliver into burrows and then ignite a mixture of propane and oxygen, or similar combination of explosive gases, may be used by a person, or a person's agent, to take Richardson's ground squirrel, rock squirrel, thirteen-lined ground squirrel, pocket gopher, marmots, black-tailed, white-tailed, and Gunnison prairie dogs where necessary to control damage on land owned by them.
- D. Furbearers may be taken using foothold traps, any body-grip device, and cable device traps, when trapping is done in accordance with the provisions of 33-6-204, C.R.S. (General Exemptions); 33-6-205, C.R.S. (Exemption for Departments of Health); 33-6-206, C.R.S. (Nonlethal Methods Exemptions); or 33-6-207, C.R.S. (Exemptions for Protection of Crops and Livestock); all of which are exemptions authorized by Article XVIII, Section 12, of the Colorado Constitution; conditioned as follows:
1. All foothold traps set on land must be equipped with: a) padded, laminated or offset jaws; b) anchor chains attached to the center of the base plate of the trap; such chain shall have a double swivel mechanism to prevent tangling of the chain; c) a spring device which serves as a shock absorber; d) when anchored by a stake, a chain of 30 inches or less must be utilized; e) when anchored by a drag, a chain of six feet or less must be utilized.
  2. All enclosed foothold traps set on land must be equipped with: a) a chain or cable of 15 inches or less when anchored by a stake; b) a center mounted anchor; c) such chain or cable shall have a double swivel mechanism to prevent entanglement; d) when anchored by a drag, a chain or cable of six feet or less must be utilized.
  3. All foothold traps with an inside jaw spread of 5 ½ inches or greater and set on land must be equipped with a pan-tension device set to a minimum release pressure of 3 ½ pounds as tested at the center of the pan.
  4. All pads on padded jaw traps must be maintained in good condition so as to effectively minimize injury to the trapped animal.
  5. Any foothold trap, enclosed foothold trap, or any colony trap designed to be a drowning set, may be used as a drowning set when trapping is done in accordance with the provisions of the Departments of Health Exemption or the Exemptions for the Protection of Crops and Livestock.
  6. Nonlethal cable device traps: when set on land must be equipped with an in line swivel placed at least one (1) foot from the stake and with a stop designed to restrain furbearers without suffocation, by preventing the cable device trap from closing to a circumference of not

less than 10.5 inches, except stops may be set at a circumference of not less than 8.0 inches in areas and at times when red fox are causing damage to livestock. All cable device traps must break away at a maximum of 350 pounds of pull.

7. Lethal cable device traps: passive or non-mechanical foot cable device traps are prohibited, except when trapping is done in accordance with the provisions of the Departments of Health Exemption or the Exemptions for the Protection of Crops and Livestock. Mechanical or spring-powered foot cable device traps are permitted. All cable device traps must break away at a maximum of 350 pounds of pull.
8. Body grip devices with a maximum jaw spread of 8.5 X 8.5 inches or greater may not be used, except in water set, and only when trapping is done in accordance with the provisions of the Departments of Health Exemption or the Exemptions for the Protection of Crops and Livestock.
9. Body grip devices with a maximum jaw spread between 7.0 X 7.0 and 8.5 X 8.5 inches may not be used, except in water sets, when set at least 5 feet above the ground, or when set in devices designed to exclude dogs; and only when trapping is done in accordance with the provisions of the Departments of Health Exemption or the Exemptions for the Protection of Crops and Livestock.
10. Body grip devices used to take muskrat on land must be a double-spring design and have a maximum jaw spread no greater than 4.5 X 4.5 inches. A single-spring design with a maximum jaw spread no greater than 4.5 X 4.5 inches is permitted for muskrat in submersion sets. Provided further that any such use of body grip devices must be in accordance with the provisions of the Departments of Health Exemption or the Exemption for the Protection of Crops and Livestock.
11. To avoid the taking of river otter, trapping in the following areas is prohibited except with: a) padded, laminated, or off-set jaw traps; b) body grip devices with a maximum jaw spread less than 7 X 7 inches in size; or c) land or water set cable device traps with a closure size of 16-inch circumference or larger. Provided further that padded, laminated, or off-set jaw traps and cable device traps may not be used in drowning sets, that padded, laminated, or off-set jaw traps and land set cable device traps may only be set in accordance with the provisions of the Departments of Health Exemption, Nonlethal Methods Exemption, or the Exemption for the Protection of Crops and Livestock; and that water set cable device traps and body grip devices may only be set in accordance with the provisions of the Departments of Health Exemption or the Exemption for the Protection of Crops and Livestock.
  - a. That portion of the Gunnison River and five (5) miles upstream along each of its tributaries in Montrose and Delta Counties from the Black Canyon of the Gunnison National Park downstream to that point where the river meets Highway 92; and all lands within 100 yards of the high water line of this portion of the Gunnison River and all tributaries thereof.
  - b. That portion of the Piedra River upstream from Navajo Reservoir to the headwaters including East Fork and Middle Fork of the Piedra River in Hinsdale and Archuleta counties and 9 miles upstream on the First Fork. This restriction includes the following tributaries: Sand Creek, Weminuche Creek, Little Sand Creek, Williams Creek and all lands within 100 yards of the high water line of the above waters.
  - c. The Dolores River from McPhee Reservoir downstream to Bed Rock is closed within 100 yards of the high water line.



- d. The San Juan River from Pagosa Springs downstream to the New Mexico state line is closed within 100 yards of the high water line.
- 12. On all public land or public easement through private land the use of all traps except live traps is prohibited on or within 30 feet of either side of officially designated and marked trails. Provided further that foothold or cable device traps may only be set in accordance with the provisions of the Departments of Health Exemption or the Nonlethal Methods Exemption.
- 13. The use of ground set foothold traps and cable device traps are prohibited within 30 feet of the exposed carcass of any game wildlife or domestic animal. Such traps may only be set in accordance with the provisions of the Departments of Health Exemption, the Nonlethal Methods Exemption, or the Exemptions for the Protection of Crops and Livestock.
  - a. For the purpose of regulation #17122.D(13) only, "carcass" means the meat and internal organs of game wildlife and domestic animals and does not include bones, hides or other nonedible parts.
- 14. No foothold trap, enclosed foothold trap, body grip device, or cable device trap, except for those lawfully placed on private property, may be set within 50 feet of either side of the traveled portion of any state highway, U.S. or Interstate highway, or any county road. Such traps may be set on public land in accordance with the provisions of the Departments of Health Exemption.
- 15. To avoid the taking of kit fox, all foothold traps used within the area designated below must be set with a pan tension device that requires a minimum of 3 ½ pounds of force to activate the trap. Except for water or tree sets, body grip devices are prohibited within the following area: That portion of Delta, Mesa and Montrose counties bounded on the north by the Mesa-Garfield county line from the Utah state line east to U.S. Interstate 70; bounded on the east by U.S. Interstate Highway 70 from the Mesa-Garfield county line to Colorado State Highway 65; from Colorado State Highway 65 to its junction with the northern boundary of the Grand Mesa Forest and following the boundary line west, south and then east to its junction with Colorado State Highway 65, from Colorado State Highway 65 to its junction with the Gunnison River, from the Gunnison River to Colorado State Highway 347, from Colorado State Highway 347 to its junction with U.S. Highway 50; bounded on the south by U.S. Highway 50 from its junction with Colorado State Highway 347 to the Gunnison River, from the Gunnison River to its junction with the Colorado River, from the Colorado River to the Utah state line; and bounded on the west by the Utah state line. Provided further that any such trapping must be done in accordance with the provisions of the Departments of Health Exemption, the Exemptions for the Protection of Crops and Livestock and the Nonlethal Methods Exemption.

#### **E. Thirty (30) Day Trapping Period for Livestock and Crop Protection**

- 1. Landowners and others authorized by statute who are trapping pursuant to 33-6-207, C.R.S. must notify the Division in accordance with 33-6-208, C.R.S. All definitions and other provisions will be in accordance with 33-6-208, C.R.S. and 35-40-100.2-115, C.R.S.

#### **F. Baits**

- 1. Furbearers may be taken with the aid of baiting. Where permitted, baits shall consist solely of material of animal or plant origin and shall not contain any materials of metal, glass, porcelain, plastic, cardboard or paper. Wildlife used as bait shall be the carcass, or parts thereof, of legally taken furbearers, carp, shad, white and longnose suckers, and nonedible portions of legally obtained game mammals, birds and game fish.

## **G. Checking Frequencies**

1. All live traps (limited to cage or box traps) must be visually checked on site at least once every day, except under the provisions of #17122.G(3) below.
2. All foothold traps, non-lethal cable device traps, lethal cable device traps, body grip devices and drowning sets when used in accordance with the provisions of the General Exemptions, Departments of Health Exemption or the Nonlethal Methods Exemptions must be visually checked on site at least once every day. In the Canada lynx recovery area or on properties known to be occupied by Canada lynx the checking frequency is at least every 24 hours.
3. All live traps (limited to cage or box traps), foothold traps and non-lethal cable device traps set in accordance within the provisions of the Exemptions for Protection of Crops and Livestock, must be visually checked on site at least three times per week; twice, 2 days apart and once, 3 days apart in any seven-day period (any combination of 2-2-3).
4. All lethal cable device traps, body grip devices, and drowning sets set in accordance with the provisions of the Exemptions for Protection of Crops and Livestock must be visually checked on site at least once every 7 days.

**H. Artificial light (private land)** may be used at night to take beaver, bobcat, coyote, gray fox, raccoon, red fox, striped skunk and swift fox on private land with permission of the landowner, designated agent, lessee, or authorized employee, or with written authorization for an identified designee. Any such authorization shall contain: the designee's name; the name of the property owner, operator, or lessee; identify the target depredating wildlife; and specify the time period and geographic area in which the identified designee is authorized to take control measures. An identified designee shall not pay, nor shall the property owner, operator, or lessee accept payment from an identified designee for the right to act as an identified designee. Nothing herein prohibits the property owner, operator, or lessee from paying an identified designee for services. Wildlife Services, the Colorado Department of Agriculture, or any other government agency shall not be an identified designee.

**I. Artificial light (public land)** An owner of livestock, or the employees or designated agents of such owner or lessee, or an identified designee may also use artificial light on public lands when taking depredating wildlife on the public land they have an active lease or on adjacent public lands to that lease where depredation has occurred or is occurring, except as follows:

1. During the 24-hour period prior to and during any regular deer, elk, or pronghorn rifle season and during the 24-hour period prior to and during the opening weekend of any grouse, pheasant, quail, turkey, or waterfowl season, unless prior authorization is obtained from the Division; or
2. In any areas where human safety would be jeopardized.

Written authorization is required for any identified designee. Any such authorization shall contain: the designee's name; the name of the property owner, operator, or lessee; identify the target depredating wildlife; and specify the time period and geographic area in which the identified designee is authorized to take control measures. An identified designee shall not pay, nor shall the property owner, operator, or lessee accept payment from an identified designee for the right to act as an identified designee. Nothing herein prohibits the property owner, operator, or lessee from paying an identified designee for services. Wildlife Services, the Colorado Department of Agriculture, or any other government agency shall not be an identified designee.

## **#17123 - Special Conditions**

**A. Exemption for wildlife in conflict with people**

1. In addition to the authority granted in subsection 33-6-107(9) C.R.S. to take wildlife causing damage to real or personal property; any person, members of their family, or their agents may year-round, without securing licenses to do so, take:
  - a. Cottontail rabbits, tree squirrels or opossums on property owned or administered by them, whenever such wildlife is causing damage on such property.

Methods of take used must be in accordance with federal, state, and local law.

**ARTICLE XIII – Damage Caused By Migratory Birds**

**#17131 – Restrictions**

- A.** Landowners or their designee may use dogs to haze geese off of their property in order to prevent or alleviate damage, provided that the dog is controlled such that no geese are injured or killed.
- B.** Crows and magpies may be taken without Federal or State permit at any time of the year or at any time of the day or night when found committing or about to commit depredation upon ornamental or shade trees, agricultural crops, livestock or wildlife, or when concentrated in such numbers and manner as to constitute a health hazard or other nuisance.
- C.** Resident Canada Goose Nest and Egg Depredation Permit. The United States Fish and Wildlife Service (USFWS) requires a person to register with them online, prior to destroying any resident Canada goose nests or eggs.

**ARTICLE XIV – Damage Caused By Nongame Wildlife**

**#17141 – Restrictions**

- A.** Bats (except those federally listed bat species), mice (except those federally listed mouse species), voles, rats, porcupines, and ground squirrels may be captured or killed when creating a nuisance or causing property damage.
- B.** Take of Threatened and Endangered Species
  1. Any person may take threatened or endangered wildlife in defense of his life or the life of others.
  2. All threatened or endangered fish taken by any means shall be returned unharmed to the water immediately.
  3. While conducting an otherwise lawful activity, including, but not limited to, live trapping or hunting bobcat, taking action pursuant to 33-6-207, C.R.S., to protect livestock, protection of livestock through the use of guard dogs, decoy dogs, coursing dogs and trailing dogs, or taking action pursuant to 33-3-106, C.R.S., to prevent death or injury to human life or livestock, a Canada lynx is:
    - a. accidentally captured, but not injured, it shall be released immediately and the capture shall be reported to the Division within 24 hours;
    - b. accidentally injured, but not in the possession of the person, the injury shall be reported to the Division within 24 hours;

- c. accidentally injured and in the possession of the person, the Canada lynx shall be immediately delivered to the Division or taken to a licensed veterinarian for appropriate care and reported to the Division within 24 hours;
- d. accidentally killed, then it shall be reported to the Division within 24 hours and the carcass shall be delivered to the Division within 3 (three) days of the report.

Any failure to provide the required notice to the Division or to deliver the injured or dead Canada lynx to the Division within the time periods allowed shall be prima facie evidence of unlawful take and possession of Canada lynx.

For the purposes of this subsection, “accidental” specifically excludes any intentional, knowing or negligent action on behalf of any person or a person’s agent or employee.

## **ARTICLE XV – Damage Caused By Nuisance Wildlife**

### **#17151 – Motor Vehicle Permits**

#### **A. Motor Vehicles, by permit only.**

1. The Division may issue permits to licensed and/or commercial operators, which shall be free of charge, for the taking of nuisance wildlife from within or on a motor vehicle when it is determined by an Area Wildlife Manager or District Wildlife Manager that such a permit is necessary for the protection of property including crops or livestock. Applicants shall fill out applications furnished by the Division and shall give such information thereon as may be required by the Division; including, if requested, a map of the area where control of animal damage is needed.
2. Permits shall not be issued for longer than a sixty (60) day period. A permit may, however, be renewed without submitting a new application unless deemed necessary by the Regional Wildlife Manager. Any such permit may be revoked by the Regional Wildlife Manager at any time. Permittees shall abide by restrictions and conditions set forth on the permit.
3. “**Nuisance Wildlife**” means those wildlife species specifically listed in §33-6-107(9), C.R.S. as well as tree squirrels, cottontail rabbits, marmots, opossums, bats, mice (except federally listed mouse species), voles, rats, and ground squirrels, which are an inconvenience or annoyance by causing damage to real or personal property.

## **ARTICLE XVI – Damage Caused By Gray Wolves**

### **#17161 – Definitions Applicable to Article XVI**

- A. “Baseline Death Loss”** is a phrase used in rule #17170 regarding Itemized Claims for missing calves, yearlings or sheep. The claimant’s Baseline Death Loss refers to the average proportion of calves, yearlings or sheep lost by the claimant annually for the three years preceding the first Confirmed Wolf Depredation experienced by the claimant on the claimant’s lawful grazing lands, whether public or private, relative to the number of such animals the claimant had under management at the time of loss. All deaths other than those caused by gray wolf depredation shall be included in the baseline, including but not limited to deaths due to predation by other wildlife, disease, poisoning, fire, flood and drought.
- B. “Baseline Conception Rate”** is a phrase used in rule #17170 regarding itemized claims for reduced conception rates of sheep and cattle. The claimant’s Baseline Conception Rate refers to

the claimant's average conception rate for the three years preceding the first Confirmed Wolf Depredation experienced by the claimant.

- C. **"Baseline Weight"** is a phrase used in rule #17170 regarding itemized claims for decreases in weight gains of sheep and cattle. The claimant's Baseline Weight refers to the claimant's average weight for the three years preceding the first Confirmed Wolf Depredation experienced by the claimant.
- D. **"Calves"** refers to domestic cattle from the age of birth through 12 months at the time of loss.
- E. **"Claimant"** refers to the owner of livestock or livestock guard or herding animals who has suffered direct or indirect losses caused by gray wolves. Only such owners can file claims for gray wolf damage compensation as provided for in this Article XVI.
- F. **"Confirmed Wolf Depredation"** has the meaning codified in #17167.
- G. **"Indirect Losses"** means decreased weights for calves, yearlings, and all classes of sheep, and decreased conception rates for domestic cattle and sheep.
- H. **"Livestock"** has the same meaning codified in § 33-2-105.8(5)(c), CRS and also includes domestic bison including hybrids with domestic cattle. See § 33-2-105.8(5)(c), CRS ("Livestock means cattle, horses, mules, burros, sheep, lambs, swine, llama, alpaca, and goats.").
- I. **"Livestock guard animal"** refers to animals whose primary purpose is attempting to protect livestock from depredation.
- J. **"Livestock herding animal"** refers to animals whose primary purpose is herding livestock.
- K. **"Nonlethal Conflict Minimization"** means lawful, nonlethal materials and techniques used by owners of livestock for purposes of avoiding, minimizing, or mitigating gray wolf damage to livestock. Such measures include hazing techniques authorized under Chapter W-10.
- L. **"Yearling"** refers to domestic cattle between 12 and 24 months old at the time of loss.

#### **#17162 – Overview of Gray Wolf Damage Claims, \$15,000 Limitations and Filing**

##### **A. Overview**

1. Section 33-2-105.8, CRS, requires the Commission to oversee the distribution of state funds that are made available to "[p]ay fair compensation to owners of livestock for any losses of livestock caused by gray wolves...." § 33-2-105.8(2)(e)(2), CRS. This Article XVI implements this requirement through the codification of Base Compensation Claims and two Optional Claims, referred to as Ratio Claims and Itemized Claims.
2. Regardless of what claim or claims agricultural producers rely on to seek compensation for damage caused by gray wolves, eligibility for compensation is limited to the fair market value of the animals at issue in the claim, up to \$15,000 per head of livestock, and up to \$15,000 per livestock guard or herding animal.
3. In addition to damages associated with injury or death, livestock producers are eligible to receive reimbursement for expenses paid to a licensed veterinarian for the treatment of livestock, livestock guard animals and livestock herding animals injured by gray wolves, including professional fees and medical supplies, and hourly labor expenses and medical supply expenses incurred while carrying out a treatment plan prepared by a licensed

veterinarian. Such expenses are limited to \$15,000 or the fair market value of the animal, whichever is lower.

4. Base Compensation Claims make owners of livestock eligible to receive state funds for the injury or death of such animals caused by gray wolves. Although not required by statute, such claims also make claimants eligible to receive state funds for livestock guard and herding animals injured or killed by gray wolves. Base Compensation Claims require claimants to, among other things, present physical evidence demonstrating that gray wolves were the actual cause of injury or death to each animal identified in the claim, such as evidence regarding the type and location of wounds on a carcass.
5. These rules also codify two additional, optional claims for claimants to seek compensation for damage caused by gray wolves (Optional Claims). Optional Claims are only available where the claimant experienced a prior Confirmed Wolf Depredation to sheep or domestic cattle. Optional Claims do not require claimants to prove gray wolves were the actual cause of injury or death to each and every animal identified in the claim, and one of the optional claims makes claimants eligible to receive compensation for Indirect Losses.
6. A Ratio Claim under #17169 is an Optional Claim. Ratio Claims enable claimants to seek compensation for multiple missing calves, yearlings or sheep relative to each Confirmed Wolf Depredation experienced by the claimant. Different ratios apply depending on whether the claimant practiced Nonlethal Conflict Minimization prior to the loss. Indirect Losses are not compensable under a Ratio Claim.
7. An Itemized Claim under #17170 is the other Optional Claim. Itemized Claims enable claimants to seek compensation for all missing calves, yearlings or sheep that the claimant reasonably believes were taken by gray wolves, but only to the extent the number of documented missing calves, yearlings or sheep claimed exceeds the average number of such animals the claimant lost due to causes other than gray wolf depredation in the three years preceding the first Confirmed Wolf Depredation experienced by the claimant. Additionally, Itemized Claims enable claimants to seek compensation for Indirect Losses.
8. Claimants may choose to pursue only Base Compensation Claims. Or claimants may pursue a Base Compensation Claim and, in their discretion, may also pursue either a Ratio Claim or an Itemized Claim, but not both of these Optional Claims.
9. Itemized Claims accrue over the course of a calendar year, require claimants to provide additional paperwork in support of such claims, and require additional analysis by the Division. Therefore, these rules establish the deadline for claimants to file Itemized Claim forms on or before the last day of December of the calendar year when the losses at issue were sustained. Doing so allows Itemized Claims to accrue and enables claimants to gather the documents and information necessary to support such claims. Claimants may only file one Itemized Claim annually. However, claimants may file multiple Base Compensation Claims and Ratio Claims throughout the year and must do so within the ninety (90) day deadline codified in § 33-3-107(2), CRS, *i.e.*, within 90 days of the Division's receipt of claimant's last Notice of Loss. Provided, however, the claimant may elect to delay filing a Proof of Loss form for a base compensation claim or a ratio claim up to and including December 31 for the year when the losses were sustained by signing a Notice of Election to File Annual Claim for Gray Wolf Depredation form provided by the Division.

#### B. Filing

These rules require claimants to file notices, claim forms, and supporting documents with the Division by providing such documents to the "relevant CPW Area Office" in paper or electronic

form. The relevant CPW Area Office means the office having administrative responsibility over some or all of the lands where the damage at issue occurred as shown on the Areas, Districts and Office Locations map on the CPW website, available at <https://cpw.widen.net/s/nwzdcgr8sg>. If the lands where the damage at issue occurred span more than one such area, the claimant should file all papers with the CPW Area Office having authority over the lands where the majority of or the most severe damage occurred. Claimants shall only file papers with one area office.

#### **#17163 – Claimant Statement on Insurance**

- A. On forms provided by the Division, Claimants must certify whether the gray wolf damage at issue in their claim is covered under an insurance policy and whether they contemplate receiving insurance compensation for such damage. If the claimant is in possession of an applicable insurance policy, they must provide the name, address, and phone number of the insurance company(s) providing coverage, the name, address, and phone number of the insurance company's agent, the amount and type of coverage provided, and the amount of insurance reimbursement requested and received.
- B. On forms provided by the Division, Claimants must authorize the Division to make inquiries into claimant's insurance coverage, including receiving information from the claimant's insurance companies and agents regarding insurance coverage for the claim submitted to the Division.
- C. In the event a claim is paid by the Division to any person and such person later receives additional compensation for such damage under an insurance policy, they shall immediately repay to the Division any moneys previously received from the State of Colorado for those damages covered by the insurance policy.
- D. Refusal to provide accurate insurance information shall be cause for denial of any claim for damage caused by gray wolves.

#### **#17164 – Notice of Loss**

- A. In order for claimants to be eligible to receive state funds for damage caused by gray wolves, claimants must give the Division timely notice of their discovery of such suspected damage on Notice of Loss forms provided by the Division. Claimants may provide initial notice of such damage to the Division verbally but must file a Notice of Loss form with the relevant CPW Area Office within ten (10) days of discovering such damage. Said ten (10) day period may be extended for up to an additional ten (10) days for good cause shown, provided the claimant gave the Division verbal notice within ten (10) days of discovering such damage. Good cause exists where the Division fails to provide the necessary forms in a timely manner or other circumstances beyond the claimant's control.
- B. Notices of Loss must identify the date or dates that death or injury to animals eligible for reimbursement occurred or the date or dates that disappearance of such animals was discovered, the number of gray wolves causing such damage, if known, the date such damage was discovered, and the estimated location and extent of such damage.
- C. If the Division receives the claimant's first written Notice of Loss more than ten (10) days after the date of discovery, the claimant shall provide an explanation for the delay. Absent a showing of good cause, claimant's failure to file a timely Notice of Loss shall be cause for denial of the claim.
- D. Claimants must file timely Notices of Loss for each gray wolf depredation event discovered.
  - 1. If the same type of damage caused by gray wolves is ongoing at a single site, additional notices are not required every ten (10) days if the claimant keeps the Division reasonably

informed of ongoing damage and the claimant files a comprehensive Notice of Loss when the damage ends. The comprehensive Notice of Loss shall include an estimate of the total extent of damage, specify beginning and ending dates that the damage occurred, and provide the other information required above. Gray wolf damage is not considered as ongoing if more than 30 days have elapsed between instances where damage occurred.

2. A single site is a single herd of cattle or band of sheep, under one ownership and continuous control between spring and winter range. If damage occurs at different sites or is of a different type, separate claims and separate investigation reports shall be required, even if the claimant is the same and gray wolves are the cause of all such damage.
- E. A Division representative accompanied by the claimant shall in cases of claims in excess of \$1,000 and may in cases of \$1,000 or less as is appropriate and necessary to determine the facts underlying the claim make an on-site inspection and investigation within ten days of the receipt of the initial notification or as soon thereafter as practicable. The claimant shall cooperate in the Division's investigation, including reasonably assisting in locating and investigating evidence of alleged damage, and authorizing the Division to enter private property under the claimant's control as is reasonably necessary to conduct the investigation.

#### **#17165 – Proof of Loss for Base Compensation Claims; Settlement Meeting**

- A. The claimant shall file Proof of Loss forms with the relevant CPW Area Office within 90 days of the Division's receipt of claimant's last Notice of Loss. Provided, however, the claimant may elect to delay filing a Proof of Loss form for a base compensation claim up to and including December 31 for the year when the losses were sustained by signing a Notice of Election to File Annual Claim for Gray Wolf Depredation form prepared by the Division. Proof of loss forms shall be provided by the Division and the claimant shall complete and return only those forms relating to the type of damage at issue. Incomplete or incorrect forms may be returned to the claimant by the Division. However, the time period for filing Proof of Loss forms shall not be altered thereby.
- B. Proof of Loss forms shall be signed and be accompanied by evidence sufficient for the claimant to prove by a preponderance of evidence that they suffered damage to livestock, or livestock guard or herding animals, and that such damage was caused by gray wolves to the extent claimed.
- C. The relevant Area Wildlife Manager or their designee will meet and confer with the claimant within thirty (30) days of the Division's receipt of the claimant's Proof of Loss form in an effort to reach a settlement.

#### **#17166 – Documentation of Base Compensation Claims**

The claimant must produce evidence establishing that gray wolves caused injury or death to livestock or livestock guard or herding animals. Evidence proving such causation may include the type and location of wounds or a physical description of the carcass, such as rake-marks and canine punctures on the hide, the measured distance between canine wounds, and hemorrhaging found underneath the hide.

The claimant must produce tangible evidence that gray wolves were present in the area, such as photographs of gray wolves, photographs of gray wolf tracks, or confirmed fur or scat samples. The claimant may also present evidence in the form of certified statements that gray wolves were in the area based on personal, firsthand observations.

#### **#17167 – Confirmed Wolf Depredation**



- A. In cases of physical trauma resulting in injury or death to livestock or livestock guard or herding animals, the Division shall determine whether such damage was caused by gray wolves. The claimant bears the burden of proof on such determination and shall cooperate in the Division's investigation.
- B. The Area Wildlife Manager or his designee will investigate as necessary and shall in cases of claims in excess of \$1,000.00 and may in cases of claims of \$1,000.00 or less as is appropriate and necessary to determine the facts underlying the claim meet with the claimant, within 30 days of the receipt of the proof-of-loss form where practicable, and at a time and place mutually agreed upon to attempt to reach a settlement.
- C. If the preponderance of evidence indicates the damage at issue was not caused by gray wolves but was caused by big game, CPW will apply the standards codified in Articles I-XVI of these rules.

#### **#17168 – Optional Claims for Damage Caused By Gray Wolves; Settlement Meeting**

Claimants who have experienced a Confirmed Wolf Depredation to sheep or domestic cattle may pursue a Ratio Claim pursuant to #17169 or Itemized Claim pursuant to #17170. Such claims are only available where the claimant has experienced a Confirmed Wolf Depredation within the 12 months preceding the filing of the claim.

The relevant Area Wildlife Manager or their designee will meet and confer with the claimant within thirty (30) days of the Division's receipt of the claimant's Ratio or Itemized Claim form in an effort to reach a settlement.

#### **#17169 – Ratio Claims; Ratio Claim Forms**

- A. Ratio Claims enable claimants to seek compensation for missing calves and all classes of sheep based on either a 5:1 or 7:1 ratio of missing calves/sheep relative to each Confirmed Wolf Depredation experienced by the claimant. Compensable calves are limited to the calves of species listed in § 33-2-105.8(5)(c), CRS. Missing livestock guard animals and missing livestock herding animals are not compensable through a Ratio Claim. In order to receive compensation at a 7:1 ratio for calves or sheep, the claimant must prove, by a preponderance of the evidence, that they took reasonable steps to use Nonlethal Conflict Minimization. Where the claimant fails to make such a showing, otherwise valid claims will be paid at a 5:1 ratio. Under no circumstances may the claimant seek compensation for missing calves or sheep in an amount that exceeds the actual number of documented calves or sheep missing. In the event, CPW pays for missing animals and an animal is subsequently returned to the claimant, the claimant shall repay CPW the amount equal to the amount the claimant received from CPW for that animal with 30 days of the animal being returned.
- B. Ratio Claims enable claimants to seek compensation for missing yearlings on either a 1:1 or 1.25:1 ratio of missing yearlings relative to each Confirmed Wolf Depredation experienced by the claimant. Compensable yearlings are limited to the yearlings of species listed in § 33-2-105.8(5)(c), CRS. In order to receive compensation at a 1.25:1 ratio for yearlings, the claimant must prove, by a preponderance of the evidence, that they took reasonable steps to use Nonlethal Conflict Minimization. Where the claimant fails to make such a showing, otherwise valid claims will be paid at a 1:1 ratio. Under no circumstances may the claimant seek compensation for missing yearlings in an amount that exceeds the actual number of documented yearlings missing. In the event, CPW pays for missing animals and an animal is subsequently returned to the claimant, the claimant shall repay CPW the amount equal to the amount the claimant received from CPW for that animal with 30 days of the animal being returned.

- C. The claimant may only pursue claims for missing calves, yearlings or sheep where grazing occurs in large, open range situations, where locating carcasses is difficult due to geographic / topographic factors. The burden of proving that a claimant cannot seek compensation for missing calves, yearlings or sheep in any particular case due to such factors shall be on the Division. During its initial investigation into each Notice of Loss, the Division shall determine whether such factors prevent the claimant from pursuing a Ratio Claim and the Division shall promptly notify the claimant of such determination.
- D. In order to receive compensation, claimants must complete a Ratio Claim form provided by the Division and file the same with the relevant CPW Area Office within 90 days of the Division's receipt of the claimant's last Notice of Loss. Provided, however, the claimant may elect to delay filing a Proof of Loss form for a ratio claim up to and including December 31 for the year when the losses were sustained by signing a form prepared by the Division. Incomplete or incorrect forms may be returned to the claimant by the Division. However, the time period for filing Ratio Claim forms shall not be altered thereby.
- E. On a Ratio Claim form provided by the Division, the claimant must certify, to the best of their knowledge, that the missing calves, yearlings or sheep were lost due to gray wolves and not other predators, disease, or other factors. The claimant must also certify, to the best of their knowledge, that the missing calves, yearlings or sheep were from the same band or flock of sheep, or herd of domestic cattle as the band, flock or herd associated with the prior Confirmed Wolf Depredation(s).

#### **#17170 – Itemized Claims; Itemized Claim Forms**

- A. Missing Calves, Yearlings and Sheep
  - 1. Itemized Claims enable claimants to seek compensation for missing calves and yearlings of species listed in § 33-2-105.8(5)(c), CRS and missing sheep, provided the claimant reasonably believes such animals were taken by gray wolves. Claimants are eligible to receive compensation for such losses only to the extent that the documented number of such missing animals claimed for the current year exceeds the claimant's Baseline Death Loss.
  - 2. The claimant may only pursue claims for missing calves, yearlings or sheep where grazing occurs in large, open range situations, where locating carcasses is difficult due to geographic / topographic factors. The burden of proving that a claimant cannot seek compensation for missing calves, yearlings or sheep in any particular case due to such factors shall be on the Division. During its initial investigation into each Notice of Loss, the Division shall determine whether such factors prevent the claimant from pursuing compensation for missing calves, yearlings or sheep and the Division shall promptly notify the claimant of such determination.
  - 3. The claimant must produce tangible evidence that gray wolves were present in the area throughout the claim period, such as photographs of gray wolves, photographs of gray wolf tracks, or confirmed fur or scat samples. The claimant should provide such evidence to the Division on a monthly basis throughout the claim period. The claimant may also present evidence in the form of certified statements that gray wolves were in the area based on personal, firsthand observations.
  - 4. The claimant must provide documents and information establishing their Baseline Death Loss.
  - 5. The claimant must provide documents and information establishing that the missing animals were vaccinated or self-certify vaccination status.

6. In order to receive compensation, claimants must complete an Itemized Claim form provided by the Division and file the same with the relevant CPW Area Office no later than December 31 for all losses sustained during the calendar year. Claimants may file Itemized Claims prior to such deadline. Claimants may file multiple Itemized Claims, provided separate claims relate to separate bands or flocks of sheep, or herds of domestic cattle and there was a Confirmed Wolf Depredation associated with each such band, flock or herd.
7. On an Itemized Claim form provided by the Division, the claimant must certify, to the best of their knowledge, that the missing calves, yearlings or sheep were lost due to gray wolves and not other predators, disease, or other factors. The claimant must also certify, to the best of their knowledge, that the missing calves, yearlings or sheep were from the same band or flock of sheep, or herd of domestic cattle as the band, flock or herd associated with the prior Confirmed Wolf Depredation(s). Under no circumstances may the number of documented missing calves, yearlings or sheep claimed exceed the actual number of documented calves, yearlings or sheep missing. In the event, CPW pays for missing animals and an animal is subsequently returned to the claimant, the claimant shall repay CPW the amount equal to the amount the claimant received from CPW for that animal with 30 days of the animal being returned.

**B. Indirect Losses**

1. Itemized Claims for Indirect Losses, meaning decreased weights for calves, yearlings, and all classes of sheep, and decreased conception rates for domestic cattle and sheep, are only available to the extent of the difference between the claimant's current, allegedly reduced, weights and rates relative to the average of such weights and rates for the three years preceding the first Confirmed Wolf Depredation experienced by the claimant.
2. In order to receive compensation, claimants must complete an Itemized Claim form provided by the Division and file the same with the relevant CPW Area Office no later than December 31 for all losses sustained during the calendar year. Claimants may file Itemized Claims prior to such deadline but may only file one Itemized Claim for each calendar year.
3. On an Itemized Claim form provided by the Division, the claimant must certify, to the best of their knowledge, that the reduction in weights for calves, yearlings, and all classes of sheep, and decreased conception rates for domestic cattle and sheep were caused by gray wolves and not other factors.
4. **Reduced Weights:** Where the claimant seeks compensation for reduced weights, the claimant must produce documents and information establishing their Baseline Weight. The claimant must also produce documents and information establishing the claimant's current claim-year weights, such as weight tickets, production records, or sales records. To qualify for compensation, the claimant must show current weights have decreased below the Baseline Weight.
5. **Conception Rates:** Where the claimant seeks compensation for decreased conception rates among domestic cattle or sheep, the claimant must produce documents and information establishing the claimant's Baseline Conception Rate. The claimant must also produce documents and information establishing the claimant's current claim year conception rates or self-certify such rates. To qualify for compensation, the claimant must show current rates have decreased below the Baseline Conception Rate. The claimant must also provide a statement self-certifying that there are no other causes which contributed to the decrease.

**#17171 – Valuation of Gray Wolf Damage Claims; Supporting Documents**

- A. Payment of gray wolf damage claims will be based on sales receipts or sales contracts when copies of such documents are filed with the Proof of Loss for Base Compensation Claims, or with the Ratio or Itemized Claim forms for Optional Claims. Expenses such as transportation, yardage, feed costs at sales yards, and sales commissions are not eligible for payment.
- B. Where such receipts or contracts are not submitted to the Division, the following methods shall be used:
1. Payment of adult range sheep claims for each age class, other than running age ewes, will be based on the prices in the USDA Agricultural Marketing Service reports from the September preceding the date of the loss or damage. Payment for running-age ewes (ewes between the ages of 2 and 5 years old) will be determined by the following formula: The value shall equal the price received for lambs based on contracts or the average weekly sale price from the USDA Agricultural Marketing Service report from the last week of September plus 50% of the above value. (Example: Fall lambs at \$90 Plus 50% = \$90 + \$45 or \$135, total value of each running-age ewe.)
  2. Payment of lamb claims will be based on the average sale price shown in the weekly USDA Agricultural Marketing Service report for the last week of the September preceding the date of the loss or damage.
  3. Payment of calf claims will be based on the average sale price shown in the monthly update published by the USDA Agricultural Marketing Service for the month of the October preceding the date of the loss.
  4. Payment of claims for decreased weights of sheep or domestic cattle shall be measured by the difference between the average weight of such animals in the claim year at the time of sale versus the average weight of such animals at the time of sale in the three years preceding the confirmed wolf depredation.
  5. Payment of claims for decreased conception rates of sheep shall be measured by the difference between an unbred sheep and a bred sheep based on the average sale price shown in the weekly USDA Agricultural Marketing Service report for the last week of the September preceding the date of the loss.
  6. Payment of claims for decreased conception rates of domestic cattle shall be measured by the difference between an unbred cow and a bred cow based on the average sale price shown in the weekly USDA Agricultural Marketing Service report for the last week of the October preceding the date of the loss.
  7. Payment of all other claims will be based on the fair market value at the time of the loss for the type, age and weight of the animal involved.
- C. For good cause shown, a claimant may establish the value of losses of livestock and, where compensable, livestock guard and herding animals, by reliable means other than those shown above. The claimant shall be required to establish by a preponderance of evidence that the valuation methods listed above are inappropriate for the claim submitted and that the method of valuation requested represents the fair market value of claimant's loss.
- D. In addition to damages associated with injury or death, livestock producers are eligible to receive reimbursement for expenses paid to a licensed veterinarian for the treatment of livestock, livestock guard animals and livestock herding animals injured by gray wolves, including professional fees and medical supplies, and hourly labor expenses and medical supply expenses incurred while carrying out a treatment plan prepared by a licensed veterinarian. Claims for hourly

labor expenses and medical supply expenses incurred while carrying out a treatment plan prepared by a licensed veterinarian shall be accompanied by veterinarian directions, documented hours spent complying with the directions, and receipts for medical supplies. Hourly labor expenses are limited to \$20 an hour. Claims for veterinarian expenses shall be accompanied by invoices and/or evidence of payment. Reimbursement authorized by this rule shall not exceed \$15,000 or the fair market value of the animal, whichever is lower.

#### **#17172 – Claim Settlement; Waiver of Commission Review**

- A. Any claim up to \$5,000 may be approved by the Area Wildlife Manager. Claims in the amount of \$5,001 to \$20,000 may be approved by the Regional Manager. Claims exceeding \$20,000 which are recommended for payment by the Division must be approved by the Commission.
- B. In cases where the Division and the claimant are unable to reach settlement, the claimant may seek review by the Commission or, subject to §§ 33-3-107 – 33-3-110, CRS, file an action in the small claims division of county court. A claim of any amount, which is recommended for denial of payment by the Director, shall require a final decision by the Commission. However, if the claim is for \$7,500 or less, the claimant may waive review by the Commission and commence an action in the small claims division of the county court for the county where the damage allegedly occurred. Such waiver shall be in writing and shall be filed in the relevant CPW Area Office within ten (10) days after such claimant receives notification from the Division of its intent to recommend the Commission deny their claim, or within ten (10) days after the claimant receives from the Division an offer of settlement unacceptable to such claimant.
- C. When a claim is recommended for denial of payment by the Division, the claimant will be notified of such recommendation by certified mail at least 30 days prior to the regularly scheduled Commission meeting when such claim will or could be considered.
- D. Any claimant who cashes a state warrant issued for the purpose of claim settlement thereby acknowledges receipt of payment in full satisfaction of damages claimed and thereby waives any and all further claim against the state for such damages.
- E. Base Compensation Claims and Optional Claims, and their associated remedies, are only available to claimants if they follow the processes codified in these regulations and, if denied, may be appealed pursuant to the State Administrative Procedure Act, §§ 24-4-101 – 204, CRS. If claimants waive commission review pursuant to #17172 or file an action for damages as authorized by § 33-3-108, CRS, none of the presumptions or inferences contained in these rules shall apply, nor shall such claimants have a claim against the state related to guard or herding animals, and the claimant shall plead and prove their entitlement to fair compensation as provided by law.

#### **#17173 – Requests for Conflict Minimization Materials**

Owners of livestock may request conflict minimization materials from the Division. The request must be made on a form provided by the Division and the requestor must indicate they have the legal right to install or use the materials sought in the location specified in the request form. Conflict minimization materials include fladry, electrified fladry, and scare devices, such as shell-crackers, propane cannons, and fox-lights.

Subject to available appropriations and taking into consideration gray wolf activity in the area, the Division may loan and deliver conflict minimization materials to the requestor only under the terms of a written cooperative agreement. Materials will be provided on a case-by-case basis, taking into consideration the proximity of wolves to livestock, previous behavior of wolf packs in the area, and whether the requestor has experienced a prior Confirmed Wolf Depredation. The Division may, in its

discretion, prioritize the distribution of conflict minimization materials throughout the state and may recommend and supply materials that are different than those requested.

#### **#17174 – Pooled Grazing Ratio Claims**

- A. The purpose of this regulation #17174 is to extend and modify the rules applicable to individual claimants pursuing Ratio Claims pursuant to #17169 to livestock owners participating in pooled grazing who have not experienced a Confirmed Wolf Depredation (Pooled Owner Claimants). For purposes of this regulation, pooled grazing refers to the practice of two or more livestock owners commingling their domestic cattle or sheep into one herd at a single site between spring and winter range. Unless otherwise provided in this regulation #17174, all other requirements of Chapter 17, Article XVI apply.
- B. Under this regulation #17174, Pooled Owner Claimants are eligible to seek compensation for multiple missing calves, yearlings, and sheep relative to each Confirmed Wolf Depredation experienced by any member of the grazing pool (Confirmed Owner(s)). As stated in regulation #17169, different ratios apply depending on whether the grazing pool, as a whole, took reasonable steps to use Nonlethal Conflict Minimization. Indirect Losses are not compensable under a Ratio Claim or Pooled Grazing Ratio Claim. Pooled Owner Claimants are not eligible to pursue claims for Indirect Losses and are not eligible to pursue a Pooled Grazing Ratio Claim where the Confirmed Owner pursues an Itemized Claim.
- C. A Pooled Owner Claimant is eligible to obtain compensation under this rule provided the following conditions are met:
  - 1. One or more Confirmed Owners experienced one or more Confirmed Wolf Depredations;
  - 2. One or more Confirmed Owners elected to pursue a Ratio Claim pursuant to #17169 or elected to pursue neither of the Optional Claims pursuant to #17169 (Ratio Claims) or #17170 (Itemized Claims); and
  - 3. There is a difference between (1) the total number of missing calves, yearlings or sheep for which the Confirmed Owner(s) received compensation and (2) the maximum number of missing calves, yearlings or sheep otherwise payable to such Confirmed Owner(s) had they claimed additional animals as missing (Excess Ratio).
- D. The Excess Ratio is available to pay otherwise valid Pooled Grazing Ratio Claims.
- E. In order to receive compensation, Pooled Owner Claimants must complete a Pooled Grazing Ratio Claim form provided by the Division and file the same with the relevant CPW Area Office within 90 days of the Division's receipt of the Pooled Owner Claimant's last Notice of Loss. Provided, however, Pooled Owner Claimants may elect to delay filing a Proof of Loss form for a Pooled Grazing Ratio Claim up to and including December 31 for the year when the losses were sustained by signing a form prepared by the Division. Incomplete or incorrect forms may be returned to the claimant by the Division. However, the time period for filing Pooled Grazing Ratio Claim forms shall not be altered thereby.
- F. Pooled Grazing Ratio Claims are dependent on a Confirmed Owner experiencing a Confirmed Wolf Depredation, will be affected by whether the Confirmed Owner has missing animals for which they seek compensation, and are unavailable where the Confirmed Owner elects to pursue an Itemized Claim. Accordingly, the Division will review Pooled Grazing Ratio Claims annually and in conjunction with its review of any claims filed by Confirmed Owners.

- G. On a Pooled Grazing Ratio Claim form provided by the Division, the Pooled Owner Claimant must certify, to the best of their knowledge, that their missing calves, yearlings or sheep were lost due to gray wolves and not other predators, disease, or other factors. The Pooled Owner Claimant must also certify, to the best of their knowledge, that their missing calves or yearlings were from the same pooled herd of domestic cattle or sheep as the herd associated with the prior Confirmed Wolf Depredation(s). The Pooled Owner Claimant must also certify, to the best of their knowledge, the total number of livestock turned out for grazing and the total brought in at the end of the grazing season, including those owned by the Pooled Owner Claimant and the pool in the aggregate.
- H. Nothing in this regulation is intended to increase the ratio of compensable missing animals relative to each Confirmed Wolf Depredation as codified in regulation #17169.
- I. In situations where Pooled Owner Claimants are missing animals in excess of the available and applicable ratio, priority shall be given to Confirmed Owners. Confirmed Owners are entitled to the full benefit of the applicable ratio before any Pooled Owner Claimants are entitled to any ratio-based compensation. Provided, however, no Confirmed Owner may receive compensation in an amount in excess of the applicable ratio codified in regulation #17169.
- J. In situations where there is an Excess Ratio, but it is inadequate to fully compensate all remaining Pooled Owner Claimants, such owners shall meet and confer in an attempt to reach a stipulated resolution of their claims. If a stipulation is reached, the claimants shall jointly notify the Division of the stipulation in writing. If the Pooled Owner Claimants cannot reach a stipulation, the Division will prioritize payments to Pooled Owner Claimants who have lost a higher proportion of animals relative to the total number of animals they had in the pool and to claimants who have a history of uncompensated Pooled Grazing Ratio Claims.

**Basis and Purpose:**

The statements of basis and purpose for these regulations can be viewed and copies obtained from the Colorado Division of Parks and Wildlife, Office of the Regulations Manager, Policy and Planning Unit, 6060 Broadway, Denver, CO 80216.

The primary statutory authority for these regulations can be found in § 24-4-103, C.R.S., and the state Wildlife Act, §§ 33-1-101 to 33-6-209, C.R.S., specifically including, but not limited to: §§ 33-1-106, C.R.S.

**EFFECTIVE DATE - THESE REGULATIONS SHALL BECOME EFFECTIVE DECEMBER 1, 2025 AND SHALL REMAIN IN FULL FORCE AND EFFECT UNTIL REPEALED, AMENDED OR SUPERSEDED.**

**APPROVED AND ADOPTED BY THE PARKS AND WILDLIFE COMMISSION OF THE STATE OF COLORADO THIS 9TH DAY OF OCTOBER 2025.**

**Approved:**  
**Richard Reading**  
**Chair**

**Attest:**  
**Eden Vardy**  
**Secretary**